

INFORMATION TECHNOLOGY LAW

Mid Semester Notes

Course IP61021 · Rajiv Gandhi School of Intellectual Property Law, IIT Kharagpur

Part 1 The IT Act 2000: Foundations

1.1 Why the Act exists

Before 2000, Indian law assumed that anything legally important was on paper, signed by hand and physically delivered. Once business moved to computers, that assumption blocked ordinary transactions. A contract by email or a filing by upload did not clearly satisfy legal formalities.

The Act removed that obstacle. Its three objects are to boost the use of computers and the internet in India, to provide a legal framework for electronic commerce, and to replace paper records with electronic records.

The Act received assent on **9 June 2000** as **Act No. 21 of 2000** and came into force on **17 October 2000**. It was heavily amended by the **IT (Amendment) Act 2008**, notified on 5 February 2009, with the substituted provisions effective from 27 October 2009. The class slides call it the "2009 Amendment" because of the notification date. **Write "the 2008 Amendment, brought into force in 2009".**

1.2 The UNCITRAL Model Law and its three principles

The **United Nations Commission on International Trade Law** adopted the **Model Law on Electronic Commerce** in **1996**. The UN General Assembly recommended it to States by **Resolution A/RES/51/162** of 30 January 1997.

Two points matter. A model law is **not binding**; it becomes law only when a legislature enacts it, and the legislature may change the words. Its purpose is **uniformity**, because trade suffers if one country accepts an electronic record and another insists on paper.

The three principles are frequently examined.

1. **Non discrimination.** A document cannot be denied legal effect merely because it is electronic. An email contract is not void for being an email, but it must still satisfy every other rule of contract law.
2. **Technological neutrality.** The law states functions and standards rather than naming technologies, so it survives technological change. This is why the Act speaks of "electronic signature" as a category rather than naming one encryption method.
3. **Functional equivalence.** Ask what job the paper requirement was doing, then allow any electronic method that does the same job. Writing protects access to information, "original" protects integrity, and signature protects authentication.

Functional equivalence does not claim that paper and pixels are physically the same. It asks what the paper formality was protecting or proving, and whether the electronic method meets a comparable standard. Understood this way, it applies to any new technology in a problem.

Konkan Railway Corporation Ltd. v. Rani Construction (P) Ltd.

AIR 2002 SC 778, Supreme Court

Facts: The case concerned a different UNCITRAL instrument, the Model Law on International Commercial Arbitration, and the Arbitration and Conciliation Act 1996. The question was whether the Model Law could guide interpretation of the Indian statute.

Decision: It could not. The Model Law had only been **taken into account while drafting**, as the Statement of Objects and Reasons showed, and the Indian Act was **not identically drafted**. So the Model Law and the literature on it were no guide to interpretation.

Principle: **International source material is not an automatic key to meaning merely because it influenced drafting. Where the Indian words differ, the Indian words govern.**

Note: The case is not about the Model Law on Electronic Commerce or the IT Act, so use it as a caution by analogy, not as deciding the point.

1.3 The Preamble

Four points are worth remembering. The Preamble gives **legal recognition** to transactions by electronic data interchange and other electronic communication. It facilitates **electronic filing with Government agencies**, taking the Act beyond private commerce into governance. It **amended four statutes**: the Indian Penal Code, the Indian Evidence Act 1872, the Bankers' Books Evidence Act 1891 and the Reserve Bank of India Act 1934. And it expressly connects the Act to Resolution A/RES/51/162 and the Model Law.

A preamble supplies purpose and context only. **Rights, duties and offences come from the substantive sections.**

1.4 What the 2008 Amendment added

This amendment created most of the modern Act, so knowing its content tells you where to look in a problem. It introduced **Section 66F** on cyber terrorism, punishable with life imprisonment; **Sections 2(1)(ta) and 3A** on electronic signatures; **Sections 43A and 72A** on sensitive personal data; additions to **Section 43** with a new **Section 66** and **Sections 66A to 66E**; **Sections 67A and 67B** on sexually explicit material and child protection; **Section 2(1)(w)** and a rewritten **Section 79** on intermediaries; and **Sections 69, 69A and 69B** giving powers of interception, blocking and traffic data monitoring.

The class material links the amendment to the **Mumbai terror attacks of November 2008**, which explains its security focus. Note also that the Cyber Appellate Tribunal was merged into the **Telecom Disputes Settlement and Appellate Tribunal** by the Finance Act 2017.

1.5 Scope: Section 1, Section 75 and the First Schedule

Section 1(2) extends the Act to the whole of India and to offences committed outside India. **Section 1(3)** fixes commencement at 17 October 2000. **Section 1(4)** excludes the documents listed in the **First Schedule**.

The extraterritorial claim is meaningful only with **Section 75**, which works in two steps. Section 75(1) applies the Act to conduct outside India **irrespective of nationality**. Section 75(2) applies it **only if the act involves a computer, computer system or computer network located in India**.

The connecting factor is the location of the computer resource in India, not the nationality of the offender. Whenever a problem involves a foreign accused, go straight to Section 75(2).

The **First Schedule** excludes five things: a negotiable instrument **other than a cheque**; a power of attorney; a trust; a will or other testamentary disposition; and any contract for sale or conveyance of immovable property or an interest in it. Each traditionally carries special safeguards for execution and authenticity.

Two traps cost marks. **The cheque is carved out of the exclusion, so the Act does apply to cheques.** And this is an **exclusion list, not a prohibition list**: it does not make those transactions unlawful, only that electronic form does not by itself satisfy their special formalities.

1.6 Definitions

Definitions decide problem questions, because the answer often turns on whether a device is a "computer" or a company is an "intermediary". Learn the clause letters.

Computer, Section 2(1)(i). Any high speed data processing device or system which performs **logical, arithmetic and memory functions** by manipulating electronic, magnetic or optical impulses, including connected input, output, storage, software and communication facilities. The focus is the **capacity to process data**, not brand or shape.

Computer system, Section 2(1)(l). A device or collection of devices including input and output support devices, but **excluding calculators that are not programmable**, capable of being used with external files. The distinguishing features are **programmability** and the ability to use **external files**.

Computer network, Section 2(1)(j). The interconnection of computers, computer systems or communication devices through any medium. The emphasis is on **interconnection**, not physical closeness, and it applies **whether or not the interconnection is continuously maintained**.

Computer resource, Section 2(1)(k). Computer, communication device, computer system, computer network, **data, computer database or software**. **This is the widest term in the Act, because it covers hardware, data and code together.** It is the definition that carried the worldwide blocking order in *Swami Ramdev*.

Communication device, Section 2(1)(ha). Cell phones, personal digital assistance, or **any other device used to communicate, send or transmit text, video, audio or image**. Being function based, it covers new gadgets automatically.

Electronic form, Section 2(1)(r), is information generated, sent, received or stored in magnetic, optical, computer memory, micro film or microfiche media. **Electronic record, Section 2(1)(t)**, is data, record, image or sound stored, received or sent in electronic form or micro film or microfiche. Electronic form describes the **medium**; electronic record is the legally recognised **thing** carrying information.

Data, Section 2(1)(o), is a representation of information, facts, concepts or instructions prepared in a **formalised manner** and processed or intended for processing in a computer system. **Information, Section 2(1)(v)**, is wider, covering data, message, text, images, sound, codes, programmes, software and databases.

Intermediary, originator and addressee

Intermediary, Section 2(1)(w). With respect to **any particular electronic record**, any person who **on behalf of another person** receives, stores or transmits that record, or provides any service with respect to it. It expressly includes telecom, network and internet service providers, web hosting services, search engines, online payment sites, online auction sites, online market places and cyber cafes.

Three points earn marks.

1. **Intermediary status is judged record by record, not company by company.** The same company can be an intermediary for one record and an originator for another. This is the most commonly missed point.
2. The core idea is **facilitation on behalf of another, not authorship**. A platform is not an intermediary for content it wrote itself.
3. Falling within the list describes only the **role**. It does not decide liability, which depends on Section 79 and the facts.

An **originator, Section 2(1)(za)**, sends, generates, stores or transmits an electronic message. An **addressee, Section 2(1)(b)**, is the person **intended by the originator** to receive the record. So the originator is the sender, the intermediary is the facilitator, and the addressee is the intended recipient. **Accidental or technical receipt does not make a person the addressee, because the test is the originator's intention.**

The class material also sets out the **chain of intermediaries**: the user, sometimes through a cyber cafe; the internet service provider giving connectivity; the DNS provider turning a domain name into a server address; then the web host, search engine, video sharing site, auction site, payment site and social network; and separately the person who actually posts the content. The legal significance is that the chain separates the **originator's act** from the **infrastructure that carries it**. In a problem, identify which link your defendant occupies, because the answer changes.

Diebold Systems Pvt. Ltd. v. Commissioner of Commercial Taxes

Karnataka High Court, 2005, paragraph 39

Facts: A tax dispute required the Court to decide whether an automated teller machine is a "computer".

Decision: An **ATM is not a computer by itself**. It is **connected to a computer** which performs the tasks requested, and that computer is connected to many ATMs which may be some distance away.

Principle: The ATM terminal is the customer facing part of a connected system; the data processing happens elsewhere. **Test a device against each element of the definition rather than judging by appearance.**

1.7 Worldwide takedown orders

One question runs through the next four cases. When a court has power over a party, can it order removal of content worldwide, or only within its own country?

The recurring answer is that jurisdiction over the person is a different question from the geographic scope of the remedy. Asserting the second is not the same as claiming sovereignty over another country.

Swami Ramdev & Anr. v. Facebook, Inc. & Ors.

CS (OS) 27/2019; 263 (2019) DLT 689, Delhi High Court, Justice Prathiba M. Singh, 23 October 2019

Facts: Defamatory videos about the plaintiff were uploaded from India and visible worldwide. The platforms offered to block them only for Indian users through geoblocking. The plaintiff wanted global removal.

Decision: The Court **split the relief by where the content was uploaded from**. Content uploaded from **Indian IP addresses** had to be taken down **globally**. Content uploaded from **outside India** had to be **geoblocked** so Indian users could not access it. Geoblocking alone was insufficient for the first category. The order was an interim injunction and was appealed.

Principle: Since **computer resource** in Section 2(k) includes a computer network, which may be a global network, removal must be complete rather than partial. Read with Section 75, **the act of uploading vests jurisdiction in the courts where the uploading takes place**. The Court also rejected geoblocking on a practical ground: easy to use applications let users circumvent it. It relied on *Glawischnig-Piesczek v. Facebook Ireland*.

Google Inc. v. Equustek Solutions Inc. (Equustek I)

2017 SCC 34, Supreme Court of Canada

Facts: A court order required Datalink to stop operating through any website. Google removed 345 Datalink pages from its Canadian domain but refused to remove them from google.com worldwide.

Decision: The global order was upheld. Injunctions may be granted against **third parties** where necessary, and although Google was not the wrongdoer its search service enabled access.

Principle: **Where a court has in personam jurisdiction over a person, it may restrain that person's conduct anywhere in the world if that is necessary to make the injunction effective.** The Court noted that the internet has no borders and its natural habitat is global, so any effective injunction will have global impact. Google never challenged jurisdiction over itself, only the global reach.

Google Inc. v. Equustek Solutions Inc. (Equustek II), and Equustek Solutions Inc. v. Jack (Equustek III)

United States District Court, Northern District of California; and 2018 BCSC 610, Supreme Court of British Columbia

Facts: In the second case Google asked the American court to declare the Canadian order unenforceable in the United States. In the third it used that American decision to ask the Canadian court to set aside its own injunction.

Decision: Google **succeeded** in the United States, the Court holding that the Canadian order undermines the policy goals of **Section 230 of the Communications Decency Act**. Google **failed** in Canada, where the court affirmed its jurisdiction over parties within its personal jurisdiction regardless of enforcement problems abroad.

Principle: **There is no contradiction. The issuing court keeps its order against a party it has power over, while a foreign court may separately refuse to enforce it. Recognition and enforcement must be assessed country by country.**

LICRA and UEJF v. Yahoo! Inc. and Yahoo France

Tribunal de Grande Instance de Paris, 2000, with later proceedings in California

Facts: Yahoo's American auction site offered Nazi memorabilia for sale, which is an offence under French law, and Yahoo France provided links and access.

Decision: The French court ordered Yahoo! Inc. to prevent the exhibition or sale of Nazi objects throughout French territory, and Yahoo France to warn users. Yahoo argued the court was **not competent** and that compliance was **technologically impossible**. Relying on expert reports the court confirmed its decision, set a three month deadline with a penalty of 100,000 Francs per day, and Yahoo eventually complied.

Principle: Access by users inside a country brings the conduct within that country's law, whatever the location of the server. This is the earliest clear instance of the conflict later seen in ***Equustek*** and ***Swami Ramdev***.

Note: Yahoo then sued in California claiming the order breached the **First Amendment**. The District Court agreed, but the appellate court decided the matter on **jurisdictional grounds** without settling enforceability. Say that much and no more.

Part 2 Liability of Intermediaries

This Part answers one question. A user posts something illegal on a platform; is the **platform** liable for what the **user** did?

In India the platform is not liable if it satisfies certain conditions. That conditional protection is called safe harbour and it lives in Section 79. Everything below concerns what those conditions are, or when the platform loses the protection.

2.1 Who counts as an intermediary

The definition in Section 2(1)(w) is in Part 1. The 2021 Rules add tiers. A **social media intermediary** is defined in **Rule 2(1)(v)**. A **significant social media intermediary** is defined in **Rule 2(1)(w)**, the threshold being **fifty lakh registered users in India** under notification **S.O. 942(E) dated 25 February 2021**. An **online game intermediary** appears in Rule 2(qb).

Tiering exists because a small forum and a platform with hundreds of millions of users should not carry identical burdens. **The heavier obligations in Rule 4 apply only to significant social media intermediaries.** So the first question in a problem is how many users the platform has.

2.2 Where safe harbour came from

Two American decisions created the problem. In **Cubby Inc. v. CompuServe Inc.** (1991) a service that did **not** moderate was treated as a **distributor**, liable only on knowledge. In **Stratton Oakmont Inc. v. Prodigy Services Co.** (1995) a service that **did** moderate was treated as a **publisher**, and so carried **greater** liability, precisely because it exercised editorial control.

Read together, these cases punished platforms for moderating. The American fix was **Section 230 of the Communications Decency Act 1996**: no provider of an interactive computer service shall be treated as the publisher or speaker of information provided by another. That is the **original safe harbour**. Remember this history, because the same trap reappears in the 2026 SGI Rules in Part 5.

The class material explains why the model came under strain. Platforms centralised power by acquiring competitors, with Facebook owning WhatsApp and Instagram by 2014. Disinformation grew and harassment of vulnerable groups became rampant. Because profit depends on maximising time spent on a platform, the goal became **algorithmic recommendation of gripping content** that holds attention and produces behaviour data for advertisers.

The conclusion drawn is that by monitoring what users read and how they behave, platforms stopped being the neutral conduit that justified their immunity in the first place. In the United States this produced political pressure, including an executive order targeting Section 230 in May 2020 and **FOSTA**, which excluded sex trafficking charges from Section 230.

2.3 The three models of liability

1. **Strict liability**, as in Thailand and China. The platform is unconditionally liable for user content, so it must monitor everything, and failure risks its business licence and criminal penalties.
2. **Safe harbour**, as in India under Section 79. Immunity is **earned** by complying with requirements such as notice and takedown.
3. **Broad immunity**, as under Section 230 in the United States. Platforms receive wide immunity and are **expressly freed from any duty to monitor**, being treated as messengers rather than publishers.

Safe harbour has two sub types. A **vertical** approach makes liability depend on the **type of content**, drawing no distinction between kinds of service, so a host and a mere transmitter are treated alike. A **horizontal** approach makes liability depend on the **function performed**, so a pure transmitter may be exempted unconditionally while a host is held to stricter standards.

Common to every regime in the world is that all of them require intermediaries to **remove unlawful content**. They differ only on when and how.

2.4 Section 79 before 2008

The old provision protected a network service provider **if he proves** that the offence was committed without his knowledge or that he had exercised all due diligence. It had three weaknesses: the **burden of proof lay on the intermediary**; the protection covered only liability **under the IT Act**; and "without his knowledge" was **undefined**.

2.5 The new Section 79

Section 79(1): the shield

Notwithstanding anything in any law for the time being in force, **but subject to** subsections (2) and (3), an intermediary shall not be liable for third party information, data or communication links made available or hosted by it.

Two mechanisms work at once. "Notwithstanding anything contained in **any law**" is a **non obstante clause** that overrides other laws, which widened the protection beyond the IT Act and cured the second weakness of the old section. **The words "subject to subsections (2) and (3)" make the immunity conditional, so it is not a blanket shield.** Always say this.

Section 79(2): the three scenarios

1. **Clause (a).** The intermediary **merely provides access** to third party information which it transmits, temporarily stores or hosts. This covers storage for carrying out transmission (**mere conduit**), storage to make onward transmission efficient (**proxy caching**), and storage of information provided by a subscriber (**hosting**).
2. **Clause (b).** The intermediary, being a **facilitator only**, plays a **passive role**: it does not initiate the transmission, does not select the receiver, and does not select or modify the information.
3. **Clause (c).** The intermediary **observes due diligence** while discharging its duties under the Act and observes any guidelines the Central Government prescribes.

The statute uses "or" between clauses (a) and (b) but does not join clause (c) to either. In ***Super Cassettes Industries Ltd. v. MySpace Inc.*** (2011) the Delhi High Court held that "or" between (a) and (b) makes them disjunctive, although (c) has to coexist with (a) or (b), whichever applies.

In plain words, a platform must satisfy either (a) or (b), and must always also satisfy (c). Due diligence is a statutory duty, not an option.

Section 79(3): when the shield falls away

There are two independent disqualifications, and only one needs to be proved.

1. **Section 79(3)(a).** The intermediary has **conspired, abetted, aided or induced**, whether by threats or promise or otherwise, the commission of the unlawful act.
2. **Section 79(3)(b).** Both of the following are present: the intermediary has **actual knowledge** that information residing in or connected to a computer resource controlled by it is being used to commit an unlawful act; **and** it fails to **expeditiously remove or disable access** to that material **without vitiating the evidence**.

Do not skip the last words. "Without vitiating the evidence" requires the intermediary to preserve evidence while taking content down. Most students miss this, which is why examiners like it.

2.6 Due diligence and the 2021 Rules

Under the **IT (Intermediaries Guidelines) Rules 2011**, Rule 3(1) required publication of rules, a privacy policy and a user agreement; Rule 3(2) required users to be told not to host nine categories of unlawful content; and Rule 3(4) provided for notice and takedown.

Four specific triggers produced the 2021 Rules, and giving them makes an answer look far better than a general one.

1. The Supreme Court, in a suo motu petition known as the **Prajawala case**, observed by order of **11 December 2018** that the Government may frame guidelines to eliminate child pornography and rape imagery from content hosting platforms.
2. By order of **24 September 2019** the Court directed the Ministry of Electronics and Information Technology to state a timeline for notifying new rules.
3. A **Calling Attention Motion** in the Rajya Sabha addressed misuse of social media, and on **26 July 2018** the Minister told the House the Government would make platforms accountable.
4. The **Ad hoc Committee of the Rajya Sabha** reported on **3 February 2020** after studying pornography on social media, recommending that the law **enable identification of the first originator**.

The **IT (Intermediary Guidelines and Digital Media Ethics Code) Rules 2021** are structured simply. Rule 3(1) imposes due diligence on all intermediaries. Rule 3(2) requires a grievance redressal mechanism. **Rule 4** adds heavier obligations for significant social media intermediaries. Rule 5 deals with news and current affairs content, and Rule 6 extends the Rules to other intermediaries.

Rule 7 is the hinge of the whole scheme: non compliance means the intermediary loses the protection of Section 79(1). Compliance is therefore not voluntary in practice. If a problem says the platform breached the Rules, go to Rule 7 and then to Section 79(1).

The Code of Ethics and the newspaper puzzle

Rule 8 governs the application of the Code of Ethics for publishers. Four definitions create a puzzle. **Rule 2(1)(i)** defines "digital media" as content carried by an intermediary or a **publisher**. **Rule 2(1)(m)** defines "news and current affairs content" as news and analysis made available over the internet. **Rule 2(1)(n)** defines "newspaper" as the same material published as loosely folded sheets with newsprint. **Rule 2(1)(t)** separately defines a publisher of news and current affairs content.

A newspaper is not covered by the 2021 Rules, while news and current affairs content online is covered. The identical journalism is regulated differently depending only on the medium of delivery. That asymmetry became the central **Article 14** argument in **Kunal Kamra** in Part 3.

Grievance redressal for publishers runs in three tiers: self regulation by the publisher under Rule 11, self regulation by self regulating bodies under Rule 12, and an oversight mechanism by the Central Government under Rules 13 and 14, with directions under Rules 15 to 17.

2.7 The cases

Shreya Singhal v. Union of India

(2015) 5 SCC 1; AIR 2015 SC 1523, Supreme Court, 24 March 2015, paragraph 119(c)

Facts: A constitutional challenge to Section 66A, Section 79 and the 2011 Rules. The free speech holding is in Part 3; this is the intermediary holding.

Decision: Section 79 was held valid **subject to Section 79(3)(b) being read down**. Rule 3(4) of the 2011 Rules was read down in the same way.

Principle: **Actual knowledge means knowledge from a court order, or notification by the appropriate government or its agency, that unlawful acts relating to Article 19(2) are going to be committed.** The reason is that if any private complaint counted as actual knowledge, platforms would remove content on demand simply to preserve immunity. That is **collateral censorship**, where a private party obtains censorship without proving anything. Placing a court or the government in between protects speech.

Note: This is the most important case in this Part. It does three things: defines actual knowledge narrowly, limits unlawful content to categories relating to Article 19(2), and reads down Rule 3(4).

Sanjay Kumar Kedia v. Narcotics Control Bureau

Supreme Court, 2007

Facts: Companies headed by the accused designed and hosted pharmaceutical websites, through which large quantities of psychotropic substances were distributed in the United States.

Decision: They were **not intermediaries**. Their acts were not simply providing third party data without knowledge of an offence under the NDPS Act, and the business was only a facade and camouflage for more sinister activity.

Principle: **The concept of an intermediary rests on facilitating on behalf of another. Someone running the illegal operation is the principal, not a facilitator.** The case was decided under the old Section 79, but the reasoning survives through **Section 79(3)(a)**, since a party who conspires or aids is outside the exemption anyway.

Avnish Bajaj v. State (the Bazee.com case)

Delhi High Court 2008; Supreme Court 2012

Facts: An obscene video clip was listed for sale on Bazee.com and criminal proceedings were launched against the company's director, under Sections 292 and 294 of the Penal Code and Section 67 of the IT Act read with **Section 85** on offences by companies.

Decision: The High Court discharged him under the Penal Code sections, holding the Code does not recognise automatic criminal liability of a director. The Supreme Court went further and held that vicarious liability could not be fastened on him at all, **because the company was not arraigned as an accused**.

Principle: **Commission of an offence by the company is an express condition precedent to the liability of persons in charge under Section 85.** The governing authority is *Aneeta Hada v. Godfather Travels & Tours (P) Ltd.*, (2012) 5 SCC 661. In any problem where only a director is prosecuted, ask first whether the company was made an accused.

Sharat Babu Digumarti v. Government of NCT of Delhi

(2017) 2 SCC 18; 2016 SCC OnLine SC 1464, Supreme Court, Justices Dipak Misra and Prafulla C. Pant, 14 December 2016

Facts: Another manager of the same website asked the trial court to drop proceedings. The court dropped Section 294 of the Penal Code and Section 67 of the IT Act but **framed the charge under Section 292**, and the High Court upheld that.

Decision: The proceedings were **quashed**. Electronic transmission is covered by the IT Act, so an accused acquitted under the relevant IT Act provisions cannot then be proceeded against under the Penal Code for the same offence.

Principle: **The IT Act is a special law, and the special law prevails over the general: generalia specialibus non derogant. For obscenity in electronic form the IT Act occupies the field.** This

applies whenever a problem raises both a Penal Code provision and an IT Act provision for the same electronic act. It is also the anchor for the obscenity cases in Part 3.

Super Cassettes Industries Ltd. v. MySpace Inc., on appeal MySpace Inc. v. Super Cassettes Industries Ltd.

Delhi High Court, Single Judge 2011; Division Bench, Justices S. Ravindra Bhat and Deepa Sharma, 23 December 2016, paragraph 57

Facts: A music label sued MySpace for copyright infringement over user uploaded content. MySpace earned advertising revenue and modified the format of uploads before display. The provisions were Section 51(a)(ii) of the Copyright Act 1957 and Sections 79 and 81 of the IT Act.

Decision: The **Single Judge** held that web space is a "place" for Section 51(a)(ii), that format modification defeated the no knowledge defence, and that **Section 81 overrode Section 79**. The **Division Bench reversed all three points**. Secondary infringement needs **actual knowledge, not mere awareness**; the proviso to Section 81 does **not** override safe harbour, so Section 79 is available even in copyright actions; and Sections 79, 81 and 51 must be read **harmoniously**. The owner had to supply a **specific catalogue of infringing works pointing to the URL**, after which removal had to follow within **36 hours**.

Principle: **Safe harbour is denied only if the owner gives URL specific notice and the platform still fails to act, and the burden of showing that specific notice was given lies on the owner.** A general letter saying "our works are on your site" does not create actual knowledge, because a platform cannot locate infringing material across millions of files from a general complaint.

Note: The case name flips on appeal because MySpace was the appellant.

Kent RO Systems Ltd. v. Amit Kotak

Delhi High Court, 2017

Facts: An intellectual property owner asked the Court to make a platform screen all listings for infringement **before** they went up.

Decision: Refused. There is **no ex ante screening obligation**. Compelling an intermediary to screen content would unreasonably interfere with its right to carry on business. Once specific infringing products are brought to its attention, however, it must remove those listings.

Principle: **Requiring an intermediary to screen content would change its role from a facilitator to an adjudicator.** An intermediary is neither equipped nor legally mandated to decide infringement questions, which involve contested issues of title, validity and defences. Note the tension with **Sabu Mathew George** below.

Christian Louboutin SAS v. Nakul Bajaj & Ors.

2018 SCC OnLine Del 12215; CS(COMM) 344/2018, Delhi High Court, Justice Prathiba M. Singh, 2 November 2018

Facts: The website Darveys.com sold luxury goods. It charged a membership fee, identified sellers, hosted an article about the brand, used meta tags and displayed the brand logo and product photographs. Louboutin alleged the goods were counterfeit or impaired.

Decision: Darveys.com **cannot be termed an intermediary** entitled to Section 79 protection. The Court set out a multi factor test for deciding whether a platform is active or passive, applied the test of whether it **conspired, abetted, aided or induced** the unlawful act, granted a permanent injunction, ordered disclosure of seller details, and required certificates of authenticity before listing.

Principle: **This is the active participation test. A platform claiming Section 79 must ensure it does not actively participate in the selling process, and any element of active participation can deprive it of the exemption.** Identifying the seller, authenticating goods, giving warranties, transporting, packaging and promoting all move a platform from facilitation into participation. In an electronic commerce problem, go through the platform's functions and count how many are participation.

Note: The class material cites paragraph 78 for the test. Verified reporting places the factor list at paragraph 56 and the aiding or abetting test at paragraph 63, so state the test without a paragraph number.

Amazon Seller Services Pvt Ltd v. Modicare Ltd & Ors.

Delhi High Court Division Bench, Justices S. Muralidhar and Talwant Singh, 31 January 2020

Facts: Direct selling companies sued online platforms for selling their products without prior written consent, alleging breach of the Direct Selling Guidelines 2016 and trademark rights. A Single Judge had granted interim injunctions in July 2019.

Decision: The order was **set aside**. The **Direct Selling Guidelines 2016 were only advisory** and had no force of law. On Section 79, the Court **declined to draw a distinction between passive and active intermediaries** so far as safe harbour is concerned. It also noted that an action for tortious interference is a matter of **evidence**, not something to decide at the interim stage.

Principle: Advisory guidelines are not law and cannot ground an injunction.

Note: **There is a real tension with *Louboutin*. Reconcile them this way: *Louboutin* asks whether the entity satisfies the definition of intermediary in Section 2(1)(w) at all, while *Modicare* addresses the different argument that Section 79 itself contains a passive or active gradation.** Say plainly that the point is not fully settled and that *Indiamart* (2025) is the most recent Division Bench view.

Neetu Singh & Anr v. Telegram FZ LLC & Ors.

CS(COMM) 282/2020, Delhi High Court, Justice Prathiba M. Singh, 2022

Facts: The plaintiffs found their video lectures and study materials circulating on Telegram channels and being sold at discounted rates. Infringing channels kept reappearing under new names, so the plaintiffs sought disclosure of the operators' identities.

Decision: Telegram was directed to disclose the **mobile numbers, IP addresses and email addresses** of the channels and devices involved, to the Court **in a sealed cover**. All four defences failed.

Principle: Take the four defences in turn. On **foreign servers**, Telegram said its encrypted servers were in Singapore, so Singapore law applied; the Court held that **jurisdiction is not excluded merely because servers are abroad, and Indian courts may direct a platform running massive operations in India to follow Indian law**. On **copyright**, the courses are literary works under Section 2(o) and the lecture videos cinematograph films under Section 2(f) of the Copyright Act 1957, so the copies were infringing. On **intermediary status**, Section 79(3)(b) required removal while preserving evidence, and Rule 3 prohibits hosting infringing content. On **privacy**, applying *K.S. Puttaswamy*, **the right to privacy cannot be used by any person, let alone an infringer, to escape the consequences of illegal action, so long as disclosure is not disproportionate**.

Note: This is one of the **two tutorial cases the teacher specifically added**, so expect it.

Flipkart Internet Private Ltd. v. State of NCT of Delhi & Anr.

W.P.(CRL) 1376/2020; 2022/DHC/003072, Delhi High Court, Justice Asha Menon, 17 August 2022

Facts: A company filed an FIR with the Economic Offences Wing under Section 63 of the Copyright Act and Sections 103 and 104 of the Trade Marks Act, alleging the platforms were allowing unauthorised resellers to sell counterfeit cosmetics. Flipkart sought to quash the FIR.

Decision: The FIR was **quashed** against Flipkart.

Principle: **Safe harbour under Section 79 is available even in criminal prosecution, unless an active role is disclosed.** The reasoning runs in three steps. Criminal liability requires proof **beyond reasonable doubt** rather than a balance of probabilities. There is no reason that higher standard should not apply to an intermediary. So if safe harbour protects against civil liability, it must also be available where a higher standard of culpability is required. The Court added that actual knowledge does not require a platform to judge whether an allegation is true and proactively delist.

X v. Union of India and Ors.

W.P.(Crl.) 1082/2020, Delhi High Court, Justice Anup Jairam Bhambhani, 20 April 2021, paragraph 90

Facts: The petitioner had posted photographs on her Facebook and Instagram accounts with privacy settings on. They were reposted without consent on a pornographic website with derogatory captions, though **the photographs were not themselves obscene**. Neither the police nor the cybercrime portal

acted, and within a week the photographs had been viewed 15,000 times. After an interim removal order they reappeared on other websites.

Decision: The Court laid down a **nine limb framework** and passed matching directions. Delhi Police were to remove the content from all websites, and Google, Yahoo Search, Microsoft Bing and DuckDuckGo were to remove it from search results and adopt proactive methods for identical content.

Principle: Although the photographs were not obscene in themselves, the **only purpose** of posting them on a pornographic site with derogatory captions could be to appeal to prurient interest, so **Section 67 was contravened**. For the order to work even within India an intermediary would have to block the content globally. **The Court noted that although content can never be fully removed from the internet, it can be made non searchable.** It expressly said it was not imposing prior restraint or a blanket ban.

The **nine limbs at paragraph 90** are the most examinable part. Courts may direct:

1. the **host website** to remove the content within **24 hours**;
2. the host to **preserve all content and records for at least 180 days** for investigation;
3. the **search engine** to remove the content from its search index;
4. intermediaries to **endeavour to employ proactive monitoring** to remove identical content;
5. law enforcement to obtain all relevant information from the websites;
6. the aggrieved party to give law enforcement all relevant information;
7. that the aggrieved party may notify law enforcement to remove the same or similar content from **any other website**;
8. the aggrieved party to notify the **National Cyber Crime Reporting Portal**;
9. that the intermediary **loses the exemption from liability** if it fails to comply.

The parties' technical arguments are worth keeping. Google said a search engine only **indexes** information and is not a publisher, that its function is **reactive rather than proactive**, and that where the problem is the **context** rather than the content, removal is technologically impossible. The Internet Service Providers Association said providers can block **entire websites** but cannot partially block content because of encryption. Cite these if asked what a search engine or an internet service provider can realistically be ordered to do.

Indiamart Intermesh Ltd v. Puma SE

FAO(OS)(COMM) 6/2024; 2025:DHC:4819:DB, Delhi High Court Division Bench, 2 June 2025

Facts: Indiamart runs a business to business discovery platform where sellers list products themselves. During registration a **drop down menu** let a seller select "PUMA" as a brand descriptor, and Puma alleged counterfeit goods were sold on the platform. A Single Judge had granted an interim injunction in January 2024, holding the drop down amounted to trademark use and active involvement.

Decision: The Division Bench **set that order aside**. Indiamart **is** an intermediary under Section 2(1)(w), the drop down did **not** amount to infringement or to aiding infringement, and Indiamart **is entitled to safe harbour**.

Principle: Three reasons. The drop down helps sellers describe goods so listings are relevant to buyers, and **Section 30(1) of the Trade Marks Act** permits descriptive use for identification where it accords with honest practices. Indiamart had not abetted, conspired or aided any unlawful act within Section 79(3)(a), and it acted on takedown requests. And consistent with **Shreya Singhal**, **private complaints or brand owner emails are not actual knowledge**.

Note: Get the direction of the appeal right. The Single Judge stage is reported as **Puma SE v. IndiaMART Intermesh Ltd.** and the appeal as **Indiamart Intermesh Ltd. v. Puma SE**.

Sanchit Gupta v. Union of India and Anr.

W.P.(C) 10030/2024; 2024 SCC OnLine Del 5880, Delhi High Court, Justice Sanjeev Narula, 23 July 2024

Facts: An IT consultant earned advertising revenue from X Premium. After his account was suspended and monetisation paused, his internal appeals went unresolved. He filed a writ under Article 226, arguing that X performs a **public function**.

Decision: The petition was **not maintainable**. X Corp does **not perform a public function** or discharge a public duty, so it is **not amenable to writ jurisdiction** under Article 226, operating instead as a private entity under private law.

Principle: **A grievance against a platform arises from a private law relationship, and the remedy lies before a civil court, not a High Court under Article 226.**

Note: Know the limits. Later Delhi High Court reasoning has distinguished this case where the petitioner enforces rights originating in **Article 21**, which **Puttaswamy** recognised as operating against non State actors. A challenge aimed at a **statutory authority**, such as the Grievance Appellate Committee, also stands differently.

Shaviya Sharma v. Squint Neon & Ors.

CS(OS) 134/2024; 2024 SCC OnLine Del 1445, Delhi High Court, Justice Prathiba M. Singh, 22 February 2024

Facts: The plaintiff posted a tweet believing she was anonymous. Objectionable tweets followed on multiple handles, some disclosing her professional identity and photographs, and an email was written to her employer. She pleaded **doxing**, meaning searching for and publishing private information with malicious intent.

Decision: Relief was granted: X to **take down five URLs within 72 hours**, to reveal the **Basic Subscriber Information** of the offending handles within one week, and Google to reveal the details of the person who registered the relevant Gmail address, the information to be used **only for legal proceedings**. But the Court held the case **does not fully constitute a suit against doxing**, because her identity was not completely anonymous: the tweet bore her initials and her photograph was her display picture.

Principle: Doxing is **not defined in Indian law and is not a statutory offence**. Unchecked it could violate the right to privacy, and it differs from other cyber harassment because the risk of **physical danger** rises sharply once an offender knows where the subject lives. Where information is openly available and used for legitimate purposes there can be no complaint, so a court must balance open information against privacy. **Victims of doxing cannot be rendered remedy less, so a court may resort to the law of torts and to privacy relief under K.S. Puttaswamy and R. Rajagopal v. State of T.N.**

Note: Do not write that the Court recognised doxing as an actionable wrong. It expressly held the case was not fully a doxing suit.

2.8 Other judicial interventions

Google India Pvt Ltd v. Visakha Industries

Andhra Pradesh High Court 2009; Supreme Court 2019

Facts: A criminal defamation case over a blog post. Google India argued it was neither publisher nor endorser and only provided a platform.

Decision: The High Court rejected that because Google had failed to remove the material, and the Supreme Court held that refusal to remove **may amount to publication**.

Principle: **There may be publication within Section 499 of the Penal Code even for an internet operator if, having the power, the right and the ability to remove a matter, on being called upon to do so there is a refusal.**

Note: A strong case for a plaintiff, but it sits in tension with **Shreya Singhal** on what triggers the duty, so state the actual knowledge standard alongside.

Sabu Mathew George v. Union of India

Supreme Court, orders through 2018

Facts: A writ petition sought to stop search engines carrying advertisements for **prenatal sex determination**, which violate Section 22 of the Pre conception and Pre natal Diagnostic Techniques Act 1994.

Decision: The Court directed the search engines to **auto block** such advertisements, to constitute **expert in house committees** to evaluate and delete violating content, and directed the Central Government to constitute a **nodal agency** which would send actionable complaints for removal within **36 hours**.

Principle: This is the strongest Indian authority against platforms on proactive duties.

Note: **Flag the tension. The Court effectively required proactive automated blocking and private committees deciding legality, which is exactly what Kent RO warned turns a facilitator into an adjudicator, and it sits awkwardly with Shreya Singhal.**

Two smaller matters deserve a line each. In the **Blue Whale Challenge** case, taken up suo motu by the Madurai Bench of the Madras High Court in 2018, the Court held that online services **cannot abdicate their duties under law** and directed the Central Government to bring over the top services within a legal framework. In **Kamlesh Vaswani v. Union of India** (2013), **857 websites were blocked** in August 2015 and **all unblocked within days**, which illustrates the limits of wholesale blocking, since overbroad blocking captures lawful adult expression and provokes immediate reversal.

2.9 Section 69A against Section 79(3)(b)

This is a live and heavily examinable issue. **Section 69A** empowers the Central Government to **block information** on specified grounds, through a detailed process under the **Blocking Rules 2009** that includes a hearing, written reasons and review, and breach of a direction is punishable.

Section 79(3)(b) confers no independent blocking power at all. It provides only that once the government notifies unlawful content, an intermediary that fails to remove it loses safe harbour.

X Corp v. Union of India (the Sahyog Portal case)

W.P. No. 7405/2025, Karnataka High Court, Justice M. Nagaprasanna, 24 September 2025

Facts: X Corp challenged the Government's power to issue takedown orders under **Section 79(3)(b)**, arguing that only Section 69A permits them; the constitutionality of **Rule 3(1)(d)** of the 2021 Rules; and the **Sahyog Portal** as an unauthorised censorship portal. The Portal had been created by the Ministry of Home Affairs after **Shabana v. Government of NCT of Delhi** (Delhi High Court, 28 October 2024) emphasised the need for coordination between platforms and law enforcement.

Decision: The petition was **dismissed**. Section 79(3)(b) allows authorities to act against unlawful content, and intermediaries must comply or lose immunity. Rule 3(1)(d) and the Portal were upheld. An appeal has been filed.

Principle: **X Corp, being a United States company, cannot claim rights under Article 19, which is a charter of rights conferred on citizens only.** The Court added that law cannot be honoured in one jurisdiction and flouted in another.

Note: The doctrinal problem to raise is that if Section 79(3)(b) works as a parallel takedown route **without** the safeguards Section 69A carries, those safeguards can be bypassed by routing demands through Section 79(3)(b) and relying on the platform's fear of losing immunity. That is the **collateral censorship** concern **Shreya Singhal** tried to close.

Telegram FZ LLC & Anr. v. Union of India & Ors.

W.P.(C) 8259 of 2026, Delhi High Court, Justice Tejas Karia, 19 June 2026, paragraphs 19 and 46

Facts: NEET UG 2026 was cancelled on 12 May 2026 over a paper leak. The Ministry of Electronics and Information Technology passed an interim blocking order on 16 June 2026, confirmed on 17 June, **blocking platform wide access to Telegram in India** until 22 June under Section 69A, and disabling message editing until 30 June before the re examination. Telegram argued it had cooperated, that a platform wide ban was disproportionate, and that Section 69A permits blocking of specific "information" rather than a whole platform.

Decision: The petition **failed**. The Court framed two issues, namely non application of mind and proportionality, and answered both against Telegram. Applying **Anuradha Bhasin**, the objective was legitimate, there was a rational nexus, the measures were necessary and they were the **least restrictive** means available. The process had conformed with Section 69A and the Blocking Rules, including an interim order, a hearing and committee review.

Principle: **Reading Section 2(1)(v) with Section 2(1)(k) and Section 69A, "information" is technologically neutral and can cover an entire application, so Section 69A can block a whole platform and not only specific content.**

Note: This is the **other tutorial case the teacher specifically added**. The blocking orders were time limited and have expired, but the judgment stands. The figures circulating in study material, that 900 of 1,300 flagged URLs were removed and 150 million users affected, appear only in secondary commentary and are not corroborated by the judgment.

Part 3 Cyber Speech

Every speech problem reduces to one question: has the speech crossed from discussion or advocacy into incitement, and is the restriction within Article 19(2)?

3.1 Why online speech is different

The shift from Web 1.0 to Web 2.0 turned the user from a **consumer** into a **prosumer**, meaning producer and consumer at once. Britannica Online became Wikipedia, websites became blogging, and photo albums became YouTube.

In Web 1.0 the publisher was identifiable and few in number. In Web 2.0 every user is a publisher.

Broadcast regulation was designed for a small number of licensed publishers and does not scale to hundreds of millions of prosumers. That mismatch is the root of every problem in this Part.

The class material quotes Anupam Chander asking who rules "Facebookistan", that is, who makes the rules governing how a tenth of humanity connects. His answer is that **regulatory power is in fact dispersed across a wide array of international actors**. Platform governance is not a simple contest between one State and one company.

3.2 Three constitutional frameworks

India. Article 19(1)(a) protects speech, and Article 19(2) permits **reasonable restrictions by law** on eight grounds only: sovereignty and integrity of India, security of the State, friendly relations with foreign States, public order, decency or morality, contempt of court, defamation, and incitement to an offence. The structure is a right plus an enumerated **closed list**, so a restriction must fall within a listed ground, be imposed by law, and be reasonable.

United States. The First Amendment provides that Congress shall make no law abridging the freedom of speech or of the press. The structure is a prohibition on the legislature with **no textual list of exceptions**, and **no reasonable restrictions clause**. Exceptions were developed by the courts and are narrow.

Europe. Article 10 of the European Convention on Human Rights protects expression including the freedom to receive and impart information **regardless of frontiers**. Because the right carries duties, it may be restricted where the restriction is **prescribed by law and necessary in a democratic society** on listed grounds. The structure is a **three part test**, with proportionality in the last limb.

India requires restrictions to be reasonable and within a closed list; Europe requires them to be necessary in a democratic society; the United States starts from a near absolute prohibition. That is why a Nazi memorabilia auction is lawful in the United States and unlawful in France, which is the **LICRA** problem in Part 1.

3.3 Hate speech: the absence of a definition is the point

The **United Nations Strategy and Plan of Action on Hate Speech** defines hate speech as any communication that attacks or uses pejorative or discriminatory language about a person or group on the basis of religion, ethnicity, nationality, race, colour, descent, gender or another identity factor.

But there is no universal legal definition of hate speech under international human rights law. State this early in any answer, because the absence runs through every Indian case below.

The definition has three attributes.

1. **Any form of expression**, including images, cartoons, memes, objects, gestures and symbols, offline or online.
2. **Discriminatory or pejorative**, meaning biased, bigoted or intolerant, and prejudiced, contemptuous or demeaning.
3. **Identity based**, calling out real or perceived identity factors, extending beyond religion and race to language, social origin, disability, health status and sexual orientation.

18 June is the International Day for Countering Hate Speech.

The Indian framework is a patchwork

Hate speech in India is governed by scattered provisions in nine statutes: the **Indian Penal Code 1860** through Sections 124A, 153A, 153B, 295A, 298 and 505; the **Representation of the People Act 1951** through Sections 8, 123(3A) and 125; the **IT Act 2000** and the 2011 Rules through Sections 66A, now struck down, 69 and 69A, with Rules 3(2)(b) and 3(2)(i); the **Code of Criminal Procedure 1973** through Sections 95, 107, 144, 151 and 160; the **Unlawful Activities (Prevention) Act 1967** through Sections 2(f), 10, 11 and 12; the **Protection of Civil Rights Act 1955**, Section 7; the **Religious Institutions (Prevention of Misuse) Act 1980**, Sections 3 and 6; the **Cable Television Networks (Regulation) Act 1995** with its 1994 Rules; and the **Cinematograph Act 1952**, Sections 4, 5B and 7.

The Penal Code has since been replaced by the **Bharatiya Nyaya Sanhita 2023**, so mention both. **The conclusion from this list is that India has no single definition and no dedicated statute on hate speech.**

Pravasi Bhalai Sangathan v. Union of India

AIR 2014 SC 1591, Supreme Court

Facts: A public interest litigation asking the Court to issue directions to stop inflammatory speeches by politicians and religious leaders.

Decision: The Court **refused to frame guidelines itself** and asked the **Law Commission** to examine the matter. This produced the **Law Commission of India, 267th Report on Hate Speech (2017)**, chaired by Dr. Justice (Retd.) B.S. Chauhan.

Principle: **Distinguish "no law exists" from "law exists but is poorly enforced". A court can fill the first gap in a limited way, but it cannot cure the second by legislating.** This is the foundation case for judicial restraint on hate speech.

Campaign Against Hate Speech v. State of Karnataka

Karnataka High Court, 2020

Facts: Petitioners sought action against media houses for reports blaming specific communities for the outbreak of Covid 19, and asked the Court to lay down a **definition** of hate speech.

Decision: The Court refused. It would be improper to provide a definition given the absence of any specific legislation or precise legislative definition by Parliament, and since Parliament had not legislated, the Court could not issue directions under Article 226.

Principle: **Courts will not judicially define hate speech in the absence of legislation, because deciding what restrictions to impose under Article 19(2) is for Parliament.**

3.4 Section 66A and the master test

The erstwhile Section 66A punished sending, by a computer resource or communication device, three kinds of message: information that was **grossly offensive or menacing**; information **known to be false**, sent **persistently** to cause annoyance, inconvenience, danger, insult, injury, criminal intimidation, enmity, hatred or ill will; and electronic mail sent to cause **annoyance or inconvenience** or to mislead about the **origin** of the message. Punishment was up to three years and a fine.

In practice the three limbs did very different work. The first was used against obscenity, morphing, defamation, cyberbullying and stalking; the second against criminal intimidation, extortion, public mischief and mob lynching through fake news; the third against spam and unsolicited calls. **That breadth explains both why its loss created a perceived vacuum and why it was unconstitutionally vague: one provision drafted in subjective terms covered spam and mob lynching alike.**

Shreya Singhal v. Union of India

(2015) 5 SCC 1; AIR 2015 SC 1523, Supreme Court, 24 March 2015

Facts: A constitutional challenge to Section 66A and connected provisions, brought after a series of arrests for online posts.

Decision: Section 66A was **struck down entirely** as violative of Article 19(1)(a) and not saved by Article 19(2). Section 79(3)(b) and Rule 3(4) were **read down**. **Section 69A and the Blocking Rules 2009 were upheld**. Note all three outcomes, because this is not a wholesale anti regulation judgment.

Principle: Four grounds. There was **no proximate relationship** between the restriction and the act targeted. The **three tier speech distinction** applied, on which see below. The section was **unconstitutionally vague**, since what is offensive to one may not be offensive to another, and even "persistently" is imprecise: it is unclear whether three messages are persistent or whether eight are needed, and there was no demarcating line. And it had a **chilling effect**, because vagueness makes people self censor lawful speech.

The three tier distinction

This is the most useful test in the paper.

1. **Discussion**, the exchange of views on an idea. **Protected** under Article 19(1)(a).
2. **Advocacy**, actively recommending or promoting a view. **Protected** under Article 19(1)(a).
3. **Incitement**, speech that stirs others to imminent unlawful action. **Only this may be restricted** under Article 19(2).

Speech can be limited on Article 19(2) grounds only when it reaches the threshold of incitement. All other speech, even if offensive or unpopular, must be protected. In any speech problem, place the speech on this ladder first. If it is discussion or advocacy, the restriction fails.

The vacuum debate after 2015

The class material frames the striking down as throwing the baby away with the bathwater. Five arguments were made for a replacement: cyberbullying, trolling, online gender harassment, **smishing** (phishing by SMS) and **vishing** (phishing by voice call) are rampant; an **expert committee** recommended amending the Penal Code, the Criminal Procedure Code and the IT Act; security agencies said they could not control incitement of terror online; the **Parliamentary Standing Committee on Home Affairs** said the removal left a **void**; and a replacement was reportedly drafted, kept specific to terror and serious law and order issues. Against this, industry, academia and civil society argued that **existing provisions are enough**.

3.5 Ashwini Kumar Upadhyay: the hate speech judgment

This is the **second tutorial case the teacher specifically added**. He summarised it in class in one line: we do not need another law on hate speech, because we already have a framework that can be used.

Ashwini Kumar Upadhyay v. Union of India

2026 INSC 432; 2026 LiveLaw (SC) 437; W.P.(C) No. 943 of 2021, Supreme Court, Justices Vikram Nath and Sandeep Mehta, 29 April 2026, paragraph 37

Facts: A batch of petitions filed between 2020 and 2025 on hate speech, communal incitement and inflammatory news, clubbed together. A major background event was the **Tablighi Jamaat and Nizamuddin Markaz incident** during Covid 19, where sections of the media allegedly linked the disease to the Muslim community. Connected petitioners included the **Peace Party of India, Firoz Iqbal Khan** challenging the programme "Bindas Bol" on Sudarshan News, **Jamiat Ulama-i-Hind, Qurban Ali** on speeches at Haridwar in December 2021, **Shaheen Abdulla**, and **Cholayil Sashidharan** on hate speech against the Hindu community.

Decision: The core question was whether the Court can **create new criminal offences** by judicial direction where Parliament has not. The answer was no, across four issues, set out below.

Principle: **The judgment is one of institutional restraint rather than expansion of rights. It neither widened nor narrowed the substantive right, and declined to legislate where Parliament had acted but enforcement had been inconsistent.** The Court also observed that hate speech is fundamentally antithetical to the constitutional value of **fraternity**.

The four issues are the structure of the judgment.

1. **Separation of powers.** Quoting Montesquieu, the Court reasoned that while the legislature and executive are subject to judicial review, **the only check on the Court's own power is the self imposed discipline of judicial restraint.** Courts **neither create offences nor legislate punishments.** *Vishaka* is different, because there the Court relied on an international convention in a situation of **genuine legislative vacuum.**
2. **Is there a vacuum? Held, no.** At paragraph 37 the Court said the submission that a vacuum exists "is misconceived" and that "the field is not unoccupied". **The mere occurrence of incidents of hate speech cannot mean the law is silent; more often the difficulty lies in effective enforcement.** It relied on *Pravasi Bhalai* and the Law Commission 267th Report and surveyed the Bharatiya Nyaya Sanhita provisions along with the other statutes listed above.
3. **Are procedural remedies adequate? Held, yes.** Relying on *Lalita Kumari*, the police have **no discretion** and must register an FIR. **Section 156(3)** gives a Magistrate wide power to direct registration and monitor investigation, without needing prior sanction. High Courts should discourage writ or Section 482 petitions filed merely because an FIR was not registered.
4. **Continuing mandamus? Held, no.** The scheme already contains adequate checks, so intervention is warranted only on a **demonstrated failure** in a specific case. National monitoring across States would amount to **micro management** of the executive. One matter was kept alive to monitor trial progress.

For extra marks, note the tension with *Wazahat Khan*, where a different Bench was contemplating guidelines on citizens' speech. **The Court's own position on judicial speech guidelines is not internally settled.**

3.6 Multiple FIRs against a speaker

Four cases share the same fact pattern: a speaker posts or broadcasts something and faces FIRs in many States at once. Learn them as a group, and note how the **remedies differ**.

Arnab Ranjan Goswami v. Union of India

W.P.(Crl.) No. 130 of 2020; (2020) 14 SCC 12; AIR 2020 SC 2386, Supreme Court, Justices D.Y. Chandrachud and M.R. Shah, 19 May 2020, paragraphs 32 and 33

Facts: Broadcasts on 16 and 21 April 2020 about the **Palghar incident**, where three persons including two sadhus were killed by a mob in Maharashtra allegedly in the presence of police, led to **fifteen FIRs and complaints** across seven States and a Union Territory. A separate FIR concerned a 29 April broadcast about migrant workers at Bandra station.

Decision: **Most summaries get this wrong, so learn it precisely. The CBI transfer was rejected. The lead FIR, renumbered FIR 164 of 2020, was retained and its investigation allowed to continue. The other fourteen FIRs and complaints were quashed.** The Court declined to quash the lead FIR under Article 32 and sent the petitioner to remedies under the Criminal Procedure Code. Following **Subramanian Swamy**, the FIR **does not cover criminal defamation** under Section 499, because only a complaint by the aggrieved person lies. Protection against coercive steps was extended three weeks, and the second petition on the Bandra FIR was dismissed.

Principle: On free speech at paragraph 32, **the exercise of journalistic freedom lies at the core of Article 19(1)(a), and India's freedoms rest safe so long as journalists can speak truth to power without being chilled by a threat of reprisal.** The right is not absolute, but multiple complaints across States on the same foundation have a **stifling effect**. A journalist's right is no higher than a citizen's, though one cannot exist without the other. On proportionality at paragraph 33, **a reasonable restriction must be the least restrictive measure for achieving the State aim, and numerous proceedings in different jurisdictions on the same cause cannot be that.** On the law, applying **T.T. Antony**, only the earliest information satisfies Section 154, so there can be **no second FIR** on the same occurrence.

Note: An accused **has no say** in the choice of investigating agency.

Mohammed Zubair v. State of NCT of Delhi

W.P.(Crl.) No. 279 of 2022, Supreme Court, Justices D.Y. Chandrachud, Surya Kant and A.S. Bopanna, 20 July 2022

Facts: The petitioner co founded Alt News. An FIR was registered in Delhi in June 2022 and he was arrested on 27 June. **Six FIRs** had been registered in Uttar Pradesh over tweets, and a **Special Investigation Team** was constituted in July 2022. Because so many cases existed, he remained under arrest in one even when released in others.

Decision: The Court granted **interim bail** in all FIRs, existing and future, on the same subject matter. It **transferred** the Uttar Pradesh FIRs to the **Delhi Special Cell** and **disbanded the SIT**. It **did not quash** the FIRs but gave liberty to move the High Court under Section 482. And it **refused to gag him**, declining the State's request for a bail condition restraining him from tweeting.

Principle: The Court observed that the machinery of criminal justice had been relentlessly employed against him and that **the process itself has become a punishment.** On arrest, reaffirming **Arnesh Kumar**, **the existence of the power of arrest must be distinguished from its exercise.**

Note: Compare with **Arnab Goswami**. Same problem and same lead judge, but a different remedy: Goswami **quashed** the other FIRs while Zubair **consolidated and transferred** them. Contrast also on conditions, since Zubair refused a speech restraint while **Mahmudabad** imposed one.

Mohammad Amir Ahmad @ Ali Khan Mahmudabad v. State of Haryana

W.P.(Crl.) No. 219 of 2025, Supreme Court

Facts: An Associate Professor at Ashoka University faced two FIRs in Sonapat over posts of 8 May 2025 about **Operation Sindoor**, India's response to the Pahalagam terror attack of 22 April 2025, under **Sections 152, 196, 197, 299 and 353 of the Bharatiya Nyaya Sanhita**. He was arrested on 18 May 2025. The post condemned Pakistan's terror network, criticised online warmongering, praised the appointment of Muslim women Army officers, and asked that those praising Colonel Sofiya Qureshi also stand up for victims of mob lynchings within India. It ended with "Jai Hind".

Decision: In May 2025 the Court granted **interim bail** expressly to **facilitate the investigation**, **refused to stay the investigation**, directed a **Special Investigation Team** of senior officers **not from Haryana or Delhi** including one woman officer, required him to **surrender his passport**, and **barred him from posting or speaking** about the posts, Operation Sindoor or the Pahalgam attack. On 28 May the probe was confined to the two FIRs. On 16 July the Court took exception to **scope creep** after devices were seized. On 25 August proceedings from one FIR were quashed.

Principle: **The matter ended on 16 March 2026 because Haryana refused sanction to prosecute as a "one time magnanimity". Write that the proceedings were closed for want of sanction, not quashed on the merits.**

Note: Use this for a **critical** answer. A bail order that gags the accused on the very subject of the case, and a mandate to decode what the Court called "dog whistling", are hard to reconcile with **Shreya Singhal**: if speech must reach **incitement**, an inquiry into subtext risks penalising advocacy or discussion. Pratap Bhanu Mehta wrote that the order could send a chill down the spine of those who care for constitutional values.

Wazahat Khan v. Union of India & Ors.

W.P.(Crl.) No. 247 of 2025, Supreme Court. Status: pending, interim orders and oral observations only

Facts: The petitioner faced FIRs across **West Bengal, Assam, Maharashtra, Delhi and Haryana** over posts on X alleged to insult Hindu deities, and was arrested on 9 June 2025. The irony is that these FIRs were registered in **retaliation** for his own earlier complaint, which had led to the arrest of influencer **Sharmistha Panoli** over posts mocking Islamic practices; Panoli was later granted interim bail by the Calcutta High Court, which observed that her arrest appeared mechanical.

Decision: On **23 June 2025** a bench of Justices K.V. Viswanathan and N. Kotiswar Singh granted **ad interim protection** against coercive action in the identified FIRs **and any future FIRs of a similar nature**, extended on 14 July 2025 by a bench of Justices Nagarathna and Viswanathan. He sought quashing or **consolidation** of the FIRs across States.

Principle: The oral observations are what the syllabus points at. On **irreversibility**, deleting a post does not remove its impact once public. On **abuse**, free speech is a very important fundamental right, but abuse of it leads to litigation and clogs courts. On **self regulation**, citizens should restrain themselves, because if they do not the State will step in, and nobody wants that. On **fraternity**, having an opinion is one thing but saying it in a particular way is an abuse. The Bench clarified it did **not** mean censorship.

Note: **These are oral remarks and interim orders, not a judgment, so never write them as settled law.** Give the balance too: commentators object that the claim about clogged courts was made without data, and that guidelines drafted at judicial instance sit uneasily with the requirement that restrictions be imposed **by law** under Article 19(2).

Imran Pratapgarhi v. State of Gujarat

2025 INSC 410; Criminal Appeal No. 1545 of 2025, Supreme Court, Justices Abhay S. Oka and Ujjal Bhuyan, 28 March 2025

Facts: A Member of Parliament posted a 46 second video of a poem. The Gujarat Police registered an FIR for promoting enmity between groups, and the High Court refused to quash it because the investigation was at a nascent stage.

Decision: The FIR was **quashed**. The poem did not target any religion and did not incite violence.

Principle: Two propositions. **Police must apply Section 173(3) of the Bharatiya Nagarik Suraksha Sanhita and conduct a preliminary inquiry before registering an FIR for speech offences carrying three to seven years.** And there is **no absolute rule** that a High Court cannot quash while an investigation is at a nascent stage. The Bench referred to a tendency to **stifle art and poetry**, Justice Oka observing that the police should at least have read and understood the poem, and that the effort to understand what a poem means is itself respect for free speech.

The Justice Shekhar Kumar Yadav episode

A sitting judge of the Allahabad High Court spoke at a Vishwa Hindu Parishad event on 8 December 2024 and appeared to endorse majoritarian rule, using phrases such as "humaari Gita, aapki Quran" along with a derogatory word. He appeared before the Supreme Court Collegium on **17 December 2024** and was told the

remarks were "avoidable", and on **1 February 2025** Justice Hrishikesh Roy confirmed that Chief Justice Sanjiv Khanna had initiated an **in house inquiry**. The inquiry was later halted after the Rajya Sabha Secretariat asserted that jurisdiction lay with Parliament, the impeachment motion stalled, and he **retired on 15 April 2025** with the matter unresolved.

This is probably the first recorded instance of a judge in India facing a disciplinary process for hate speech. **Use it alongside *Imran Pratapgarhi* to make the two sided enforcement point: under enforcement where the speaker holds institutional power, and over enforcement against poetry and satire.**

3.7 Fake news and information disorder

The problem is structurally hard. Society has shifted from broadcast media to news on social media. The internet lets users **replicate and remix** images, text and video, so it becomes very difficult to determine where anything originated and **traceability collapses**. The consequences reach **democratic processes, national security and the social fabric**.

The class material records that the threat became pernicious during the **2019 general elections** and the Haryana and Maharashtra assembly elections, that several incidents of **mob lynching** followed fake news, and that Covid 19 produced its own wave.

The three types of information disorder

The framework is from Claire Wardle, "Understanding Information Disorder" (First Draft, 2019), and rests on two axes, **falsehood** and **intent to harm**.

1. **Misinformation**. False, but **no intent to harm**. Unintentional mistakes such as wrong captions, dates, statistics or translations, or satire taken seriously.
2. **Disinformation**. False **and** intended to harm. Fabricated or deliberately manipulated content, and intentionally created conspiracy theories.
3. **Malinformation**. **Not false**, but intended to harm. Deliberate publication of private information for private rather than public interest, such as revenge pornography, and deliberate changes to the context or date of genuine content.

These categories separate falsity from intent, and malinformation is true but weaponised. So a law that simply penalises "false" information is both overinclusive, because it catches honest error, and underinclusive, because it misses malinformation entirely. This is the sharpest attack on Rule 3(1)(b)(v) in *Kunal Kamra*.

Elections and the Voluntary Code of Ethics

Before the 2019 general elections the platforms and the **Internet and Mobile Association of India** submitted a **Voluntary Code of Ethics** in March 2019, with a further Code in September 2019. It contains five commitments: voluntary awareness campaigns on electoral laws; a **dedicated grievance channel** for cases reported by the Election Commission; a **notification mechanism** for violations of **Section 126 of the Representation of the People Act 1951**, which prohibits election matter during the 48 hour silence period; **pre certification** of political advertisements by the Media Certification and Monitoring Committees; and **transparency in paid political advertisements**.

The whole mechanism is voluntary and self regulatory, with no statutory force and no sanction for breach.

Alak Alok Srivastava v. Union of India

Writ Petition No. 468 of 2020, Supreme Court, order dated 31 March 2020

Facts: The nationwide movement of migrant labourers, caused by panic created by fake news, multiplied the Government's difficulties in imposing the Covid 19 lockdown, and some migrants lost their lives.

Decision: The Court directed the media to **verify news before dissemination** and to refer to and publish the **official version** of coronavirus developments. It invoked **Section 54 of the Disaster Management Act 2005**, which penalises a false alarm about a disaster leading to panic with imprisonment up to one year or fine. It urged the Government to start an official portal for daily updates.

Principle: The Court quoted the World Health Organization Director General that we are not just fighting an epidemic but an **infodemic**, and that fake news spreads faster than the virus and is just as dangerous.

Note: **Raise the constitutional difficulty: a direction to publish the official version comes close to prescribing content and sits awkwardly with *Shreya Singhal*.**

Kunal Kamra v. Union of India

Writ Petition (L) No. 9792 of 2023; 2024:BHC-OS:14371-DB, Bombay High Court

Facts: The IT Amendment Rules 2023 introduced **Rule 3(1)(b)(v)**, empowering the Government to set up a **Fact Check Unit** to verify online content relating to the "business of the Government of India" and label it "**false**", "**fake**" or "**misleading**". Petitioners included Kunal Kamra, the Editors Guild of India and the News Broadcasters and Digital Association.

Decision: A Division Bench of Justices **Gautam S. Patel** and **Neela Gokhale** split on **31 January 2024**, and **Justice A.S. Chandurkar**, as tie breaking third judge, agreed with Patel J. in September 2024. The Rule was held to **violate Articles 14, 19(1)(a) and 19(1)(g)** and to **exceed the authority granted by the IT Act**. The Supreme Court had granted a stay on appeal while the matter was pending below.

Principle: Chandurkar J. held four things. On **Article 19(1)(a)**, **censoring information merely because it is false or misleading is impermissible, because falsity is not one of the Article 19(2) grounds**. On **Article 14**, the Rule was discriminatory in letting the Government be the **arbiter of truth in its own cause**. On **vagueness**, "fake", "false" and "misleading" were undefined, giving the Unit **unguided discretion**. On **chilling effect**, vagueness plus executive control created a real risk of self censorship, following **Shreya Singhal** and **Anuradha Bhasin**.

Note: Give the other side. **Gokhale J.**, upholding the Rule, reasoned that safe harbour is lost only where procedures inconsistent with Article 19(2) are ignored; that the Unit merely **identified** potentially false information and was not the final authority, since courts retain the ultimate power; and that **bias must be demonstrated**, not presumed from government appointment. On dates, the class material gives 26 September 2024 while reliable reporting gives 20 September 2024, so write "September 2024" if unsure. An appeal was pending, so the point is not finally settled.

3.8 Cyber obscenity and child protection

Start with the provisions. **Section 67** punishes publishing or transmitting in electronic form material which is **lascivious, appeals to the prurient interest**, or tends to **deprave and corrupt**, with up to **three years** and a fine up to five lakh rupees on first conviction. **Section 67A** punishes material containing a **sexually explicit act or conduct**, with up to **five years** and ten lakh on first conviction. **Section 67B** covers material depicting **children** in sexually explicit acts, reaching creating, collecting, seeking, browsing, downloading, advertising, exchanging and distributing it, as well as enticing children into online relationships and recording abuse, with the same punishment as Section 67A. **Section 67C** punishes an intermediary that fails to preserve and retain information as prescribed.

The **proviso to Section 67B** saves any book, writing, drawing, painting or figure in electronic form whose publication is justified for the **public good** in the interest of **science, literature, art or learning**, or which is kept for **bona fide heritage or religious purposes**. The **Explanation** defines "children" as persons who have **not completed eighteen years**.

Ekta Kapoor v. State of M.P.

M.Cr.C. No. 28386 of 2020, Madhya Pradesh High Court, Indore Bench, Justice Shailendra Shukla, 11 November 2020

Facts: An FIR concerned an episode of the web series "XXX Uncensored", streamed on ZEE5, involving a plastic surgeon, his girlfriend, and the girlfriend's stepmother who becomes intimate with him. It invoked Sections 294, 298 and 34 of the Penal Code, Sections 67 and 67A of the IT Act, and Section 3 of the State Emblem Act. The petitioner sought quashing under Section 482, saying she was not involved in the creative process.

Decision: The petition was **dismissed** and the FIR **not quashed**, a prima facie case having been made out. Citing **Anand Patwardhan**, a film must be judged from an average, healthy, common sense point of view, and on that test **Section 294 of the Penal Code and Section 67 of the IT Act were made out**. But **Section 67A was not**, because the material must contain a **sexually explicit act**, which was missing, "explicit" requiring description of sexual activity in a direct and detailed way. **Section 298** was not breached.

Principle: **Learn the Section 67 against Section 67A distinction from this case: obscenity may be made out while a sexually explicit act is not.** The Court also held that since Section 67 is a **cognizable offence**, no disclaimer can prevent a person from lodging an FIR.

Apoorva Arora & Anr. v. State (Govt. of NCT of Delhi) & Anr.

2024 INSC 223; [2024] 3 SCR 1147, Supreme Court, Justices A.S. Bopanna and P.S. Narasimha, judgment by Narasimha J., 19 March 2024, paragraphs 46 and 47

Facts: The appellants were actors, scriptwriters and the media company behind the web series "**College Romance**". A complaint about Episode 5 of Season 1 alleged vulgar and obscene language. The Delhi High Court dismissed the quashing petition, applying the community standard test.

Decision: The appeal was **allowed**, the High Court judgment **set aside**, and FIR 403 of 2023 **quashed**.

Principle: **Vulgarity and profanity do not by themselves amount to obscenity. To be obscene, material must be lascivious, appeal to prurient interests, or have a corrupting or depraving influence, and it must expressly arouse sexual urges.** The enquiry does **not** hinge on whether the language is decent or commonly used, since that would force content makers to meet standards of judicial propriety and official language. On **method**, a court must consider the work **as a whole**, then the impugned portions in context, first stepping into the position of the **creator** and then of the **viewer**. Since no sexual acts were depicted, **Section 67A was not attracted at all**. The Court relied on **Aveek Sarkar**, **Samaresh Bose** and **Bobby Art International**.

Note: A further argument is worth borrowing: because internet content is **pull media**, where the viewer chooses what to watch, a **higher threshold of obscenity** applies than for television or radio. **Contrast with Ekta Kapoor**, which refused to quash on the basis that the storyline was contrary to Indian ethics and morality. **Apoorva Arora**, being a 2024 Supreme Court judgment, is the **stronger and later authority**. A partial reconciliation is that **Ekta Kapoor** was only a Section 482 refusal at the prima facie stage.

Allahbadia v. Union of India (the "India's Got Latent" matter)

W.P.(Crl.) No. 83 of 2025, Supreme Court, Justices Surya Kant and N. Kotiswar Singh. Status: pending, interim orders only

Facts: In February 2025 clips from a YouTube panel show using explicit sexual references to parents went viral. On 10 February 2025 the Guwahati Police registered an FIR against five creators under Sections 79, 95, 294 and 296 of the **Bharatiya Nyaya Sanhita 2023** read with **Section 67 of the IT Act**, the **Cinematograph Act 1952** and the **Indecent Representation of Women (Prohibition) Act 1986**, with parallel proceedings in Maharashtra and Jaipur.

Decision: On **18 February 2025** interim protection was granted on **four conditions**: full cooperation, surrender of his passport, remaining in India, and halting all new episodes. On **3 March 2025** he was permitted to resume his podcast subject to maintaining "**decency and morality**" and suitability for all ages, and the Centre was directed to draft a **regulatory mechanism** for social media content within Article 19(2). On **28 April 2025** the passport was released, the Court noting that the Guwahati FIR contained specific allegations absent from the Mumbai FIR, so clubbing was not ordered.

Principle: The Court indicated a need for effective regulatory measures balancing societal morality with Article 19(1)(a). The connected matter **SMA Cure Foundation v. Union of India** was heard alongside.

Note: **These are interim orders only. The critical point is that a bail condition requiring "decency and morality" is a content condition imposed by judicial order rather than by law, and measured against Apoorva Arora a year earlier, it is close to the very vagueness that judgment rejected.**

Just Rights for Children Alliance & Anr. v. S. Harish & Ors.

2024 INSC 716; [2024] 10 SCR 154, Supreme Court, Chief Justice D.Y. Chandrachud and Justice J.B. Pardiwala, 23 September 2024

Facts: The respondent's phone was found to contain **108 pornographic videos, two depicting children**, downloaded and stored over an extended period. A chargesheet was filed under **Section 15(1) of the POCSO Act 2012** and **Section 67B of the IT Act**. The **Madras High Court quashed** the proceedings, holding that mere downloading, storage or viewing was not an offence and that Section 67B covers only transmission, publication or creation.

Decision: The appeal was **allowed**, the High Court judgment **set aside**, and the proceedings **restored**.

Principle: Six propositions. **Section 15 of POCSO has a three tier structure**, and even the lightest tier, **mere storage or possession without reporting or deleting, is an offence**. By **constructive possession, online viewing falls within possession, so merely viewing is punishable even without downloading or distributing**. **Section 67B** is not confined to transmission and covers **browsing and downloading**. **Section 30 of POCSO** raises a presumption of culpable mental state which the accused must **rebut at trial**, not at the quashing stage. POCSO is a **self contained legislation** enacted with **Articles 15 and 39** in mind. And the Court recommended replacing "child pornography" with **Child Sexual Exploitative and Abuse Material (CSEAM)**, because "pornography" implies consensual adult production whereas the material records abuse of a child.

Note: The answer to the objection that mere viewing harms nobody is that passive consumption **fuels the exploitation cycle** by creating the demand that drives production. In your own writing use **CSEAM** except when quoting a statute or an earlier judgment.

Part 4 Cybersecurity

This Part has a simple shape: one definition, then a **two track institutional structure**, one track for **critical infrastructure** under Sections 70 and 70A, and one for **everything else** under Section 70B. Learn the two tracks and you have the Part.

4.1 What cybersecurity means

Technically, cybersecurity is the technologies, processes and controls that protect systems, networks and data from attack, damage and unauthorised exploitation. It covers **information security**, **system security** and **network security**, and extends to **cyber physical systems**, which combine computation with physical processes. That last point explains why an attack on a power grid is a cybersecurity problem with **physical** consequences.

Section 2(1)(nb) defines cyber security as protecting **information, equipment, devices, computer, computer resource, communication device** and information stored therein from **unauthorised access, use, disclosure, disruption, modification or destruction**.

Now map those six harms onto the **CIA triad**. **Confidentiality** is protected against unauthorised access, use and disclosure. **Integrity** is protected against unauthorised modification. **Availability** is protected against unauthorised disruption and destruction.

The six harms in the statute map exactly onto the three limbs of the CIA triad. Saying so shows you understand the provision rather than merely reciting it.

4.2 The threat picture

Keep two or three concrete examples ready. At **AIIMS Delhi** in November and December 2022, five servers were hacked and **1.3 TB of data was encrypted**, as the Government told the Rajya Sabha. Reports indicated records of nearly three to four crore patients were compromised. The probe traced the attack to China and data was restored; AIIMS was hit again on 6 June 2023.

On the **Indian electric grid**, the New York Times reported that as border skirmishing increased, malware began to flow into the grid, and that a blackout in Mumbai now looks like a warning. During **Operation Sindoor in 2025**, the Minister stated that there were **two lakh cyber attacks on India's power system**, continuing for eight to ten days, with critical infrastructure, defence undertakings and financial platforms targeted.

On **7 August 2025** the Chief of Defence Staff released declassified versions of the **Joint Doctrine for Cyberspace Operations**, setting out a unified approach that integrates **offensive and defensive** capabilities across the three Services, with emphasis on threat informed planning, resilience and real time intelligence integration. The framing line from class, quoting the New York Times, is that cyber power is the "perfect weapon: cheap, hard to see coming, hard to trace", the example being **Stuxnet**.

On measurement, India achieved **Tier 1 status** in the International Telecommunication Union's **Global Cybersecurity Index 2024** with a score of **98.49 out of 100**. The Index measures five pillars: **legal, technical, organizational, capacity building and cooperation**.

4.3 The international layer

The **Tallinn Manual 2.0 on the International Law Applicable to Cyber Operations** was prepared by an expert group convened by the **NATO Cooperative Cyber Defence Centre of Excellence**. **Its status is the examinable point: it is an expert restatement, not a treaty, and it is not binding.**

Two parallel United Nations processes deal with responsible State behaviour in cyberspace, and the contrast explains the politics.

1. The **Group of Governmental Experts**, established under **Resolution A/RES/73/266** and chaired by Brazil, had only **25 selected Member States**. It held six consultations with regional organisations and

two with all Member States, and reported to the 76th General Assembly Session in 2021 with an annex of national contributions.

2. The **Open Ended Working Group**, established under **Resolution A/RES/73/27** and chaired by Switzerland, was open to **all interested Member States**. It held intersessional meetings with **stakeholders** from business, non governmental organisations and academia, and reported to the 75th Session in 2020 **on a consensus basis**.

The Group is small and expert, which makes consensus easier but representation narrower. The Working Group is universal and multistakeholder, which makes it more legitimate but consensus harder. Two tracks exist because States disagree about whether cyber norms should be made by a select group or by everyone.

4.4 The National Cyber Security Policy 2013

Its core objective, quoted, is to "protect information as well as information infrastructure, reduce vulnerabilities, build capabilities to prevent and respond to cyber threats and minimize damage from cyber incidents". Four elements matter: the **3Ps**, meaning **product, process and personnel**, described as the basic building blocks of any cybersecurity system; promotion of **global best practices** through standards, the best known being the information security management standard of the International Organization for Standardization; a **workforce target of five lakh** cyber warriors within five years; and **strengthening the regulatory framework** with periodic review.

The critique lifts the answer: the Policy is a policy document, not law, and creates no enforceable rights or duties. The workforce target was not met. Its real value is as a statement of **strategic intent** and as the conceptual origin of the architecture that Sections 70A and 70B later gave legal form.

One caution: the class slides record the standard as "ISO/IEC 2001", whereas the information security management system standard is **ISO/IEC 27001**. If unsure, write the name rather than the number.

4.5 Track one: critical infrastructure

Section 70(1) lets the appropriate Government declare, by Gazette notification, any **computer resource which directly or indirectly affects the facility of Critical Information Infrastructure** to be a **protected system**. **Section 70(2)** lets it authorise by written order the persons who may access such systems. **Section 70(3)** punishes any person who **secures access or attempts to secure access** in contravention of the section with imprisonment up to **ten years** and a fine. **Section 70(4)** requires the Central Government to prescribe the information security practices for protected systems.

The **Explanation to Section 70(1)** defines Critical Information Infrastructure as the computer resource whose incapacitation or destruction shall have a debilitating impact on **national security, economy, public health or safety**. Learn those four heads by name, because examiners ask for them.

Two features are worth noting. Section 70(3) penalises the **attempt** as well as the act, which is unusual and reflects the gravity attached to critical infrastructure. And **ten years** is the second highest punishment in the Act, after Section 66F which carries life imprisonment.

The conceptual heart of the subject is the **cascade point**. Such infrastructures are the backbone of a country, on which transport, power, energy, telecom and the financial sectors rest. **Because of cross sectoral interconnectedness, a breakdown in one is likely to have ripple effects on others, creating the possibility of cascading disasters.** A payment system failure becomes a fuel distribution failure becomes a hospital supply failure.

For a concrete example, notification **G.S.R. 993(E)** dated **11 December 2015** declared the Unique Identification Authority of India's **Central Identities Data Repository** to be a **protected system**, and under Section 70(2) identified the authorised personnel with **role based access**. This shows the mechanism working end to end: a notification under 70(1), an order under 70(2), and the ten year consequence under 70(3).

Section 70A completes the track. It lets the Central Government designate any **organisation of the Government** as the national nodal agency for **Critical Information Infrastructure Protection**, responsible

for **all measures including research and development**. The designated agency is the **National Critical Information Infrastructure Protection Centre**, a unit of the **National Technical Research Organisation**, governed by the **CII Rules 2013** and the **Protected System Rules 2018**. It covers six sectors: transport; power and energy; telecom; government; banking, financial services and insurance; and strategic and public enterprises.

Under the 2013 Rules, **Rule 4(2)** requires protection from any **cyber terrorist attack** and from being a target in **cyber warfare**. **Rule 4(5) provides that responsibility is co shared with the agency actually running that infrastructure, so the nodal agency does not displace the operator's own responsibility**. The criteria for identifying such infrastructure are the size and economic value of the process, its criticality, the duration of non availability, and the level of dependency on other critical sectors. **Rule 5** deals with coordination and with powers under **Section 69B**, the power to monitor and collect traffic data for cybersecurity purposes.

4.6 Track two: everything else

Section 70B(1) requires the Central Government to appoint an agency called the **Indian Computer Emergency Response Team**. **Section 70B(4)** makes it the **national agency** for six functions: collection, analysis and dissemination of information on cyber incidents; forecast and alerts; emergency measures; coordination of incident response; issuing guidelines, advisories, vulnerability notes and white papers; and such other functions as may be prescribed.

Three subsections give it teeth. **Section 70B(6)** empowers it to **call for information and give directions** to service providers, intermediaries, data centres, body corporate and any other person. **Section 70B(7)** punishes failure to comply with imprisonment up to **one year** or a fine up to **one lakh rupees** or both. **Section 70B(8)** provides that no court shall take cognizance except on a complaint by an authorised officer, **so there can be no private prosecution under Section 70B**.

Under the **CERT Rules 2013**, **Rule 7** confines the Team to cybersecurity in general and **non critical sectors in particular**, its constituency being the "Indian cyber community", with **Rule 10** providing for consultation.

The division of labour: critical sector means Sections 70 and 70A, the NCIIPC, and the CII Rules 2013 with the Protected System Rules 2018. Non critical sector means Section 70B, the CERT, and the CERT Rules 2013. So a power grid, bank or telecom network puts you in track one; an ordinary company, data centre or VPN provider puts you in track two.

4.7 The CERT Directions of 2022, known as the VPN Directions

These were issued under the **Section 70B(6)** power and are the best material in this Part for a critical question. Start with the technology, because the contradiction is the point. The core features of a virtual private network are user security and privacy through an **encrypted connection**, concealing the Internet Protocol address and keeping the user unidentifiable. The Directions cut directly against that function.

Direction (iv) requires all service providers, intermediaries, data centres, body corporate and Government organisations to enable logs of all their systems and maintain them securely for a **rolling period of 180 days, within the Indian jurisdiction**, to be provided to the Team on reporting an incident or when directed.

Direction (v) requires data centres, Virtual Private Server providers, cloud service providers and VPN service providers to **register and maintain accurate information for five years**, even after cancellation of registration. Seven items must be kept: validated subscriber names; the period of hire including dates; IP addresses allotted or used; the email address, IP address and time stamp used at registration; the purpose for hiring; validated address and contact numbers; and the ownership pattern of subscribers.

The critique has four limbs.

1. **Contradiction of purpose. The Directions impose a data retention mandate on providers whose entire service proposition is non retention.** Several international providers withdrew physical servers from India.

2. **Form of the instrument.** They were issued as **executive directions** under Section 70B(6), not as rules laid before Parliament.
3. **No data protection backstop.** They were issued before any data protection statute was in force, so nothing constrained how the retained data could be used.
4. **Proportionality.** Measured against the *K.S. Puttaswamy* standard, the **least restrictive means** limb is the weakest point.

The class discussion framed this as "big brother watching sort of things", noting that a user can no longer assume that using a Singapore server keeps them outside Indian reach.

4.8 Two closing points

The teacher also pointed to the **Telecommunications Act 2023** and the **telecom cybersecurity rules** on critical information infrastructure in telecom, describing them as the other leg of legislation dealing with communication. If a problem involves a telecom network, mention that this parallel regime exists alongside Sections 70 to 70B.

The concluding themes are that the Indian landscape must **adapt and prove its resilience**, cyber being the new frontier alongside land, sea and air; that **all stakeholders** must be brought together without a rigid public and private split, since many critical sectors are now privately run; and that **not all risks can be addressed by governments and industry**, so citizens must also act. The mantra from class is **A, assume nothing; B, believe nobody; C, check everything**. October is observed as cybersecurity month.

Part 5 The 2026 Rules on Synthetically Generated Information

The teacher said the week before the exam would include a **tutorial class on SGI**, and that the **2026 amendment to the 2021 Rules** defines synthetically generated information, or **deepfakes** as we understand them.

On status, a draft notification was issued on 22 October 2025, and the final Amendment Rules were notified on **10 February 2026** by Gazette notification **G.S.R. 120(E)**, under Section 87(1) and clauses (z) and (zg) of Section 87(2) of the IT Act, coming **into force on 20 February 2026**.

5.1 Why the amendment was needed

Generative artificial intelligence has made synthetic content **cheap and accessible**, and rising internet use has accelerated its spread. Systems now produce highly realistic manipulated audio, video and text with **minimal user input**, so the line between authentic and artificial content is becoming very hard to identify.

Traditional legal frameworks are built on **human authorship and traceability** and are becoming inadequate. The risks run to fraud, impersonation, misinformation, electoral manipulation and erosion of public trust, while existing law under the IT Act and the Bharatiya Nyaya Sanhita addresses these harms only in a **fragmented and reactive** way.

The conceptual shift is from reactive, liability based regulation to technology embedded regulation.

That is a good opening line for an essay.

5.2 The definitions

Rule 2(1)(ca) defines "audio, visual or audio-visual information" as any audio, image, photograph, graphic, video, moving visual recording or sound recording, whether created, generated, modified or altered through any computer resource.

Rule 2(1)(wa) defines **synthetically generated information** as audio, visual or audio-visual information which is **artificially or algorithmically created, generated, modified or altered using a computer resource**, in a manner that it **appears to be real, authentic or true** and depicts any individual or event in a manner that is, or is likely to be perceived as, **indistinguishable from a natural person or real-world event**.

An exclusion covers good faith uses: routine editing or enhancement without misrepresentation; routine creation of documents without creating false records; and use of tools only for accessibility, clarity, translation or searchability without manipulating any material part.

5.3 The safe harbour fix

Rules 2(1A) and 2(1B) bring such information within the 2021 Rules and the Section 79 framework, allowing intermediaries to use reasonable technical measures, including automated tools, to detect, label, remove or disable access to it. Crucially, such measures, when compliant with the 2026 Rules, will **not by themselves** amount to selecting or modifying content under Section 79(2)(a) and (b).

Understanding why this matters marks out a good answer. Under **Section 79(2)(b)** an intermediary keeps the exemption only if it does **not select or modify** the information transmitted, and automated detection and labelling looks like exactly that. **So without a deeming provision, an intermediary that complied with a labelling mandate could lose its safe harbour for doing so.**

That recreates, in new form, the **Stratton Oakmont** problem from Part 2, namely punishing platforms for moderating. Rules 2(1A) and 2(1B) are the fix. Drawing this link between a 1995 American case and the 2026 Indian Rules is the kind of connection that distinguishes a top answer.

5.4 The new obligations

1. **Rule 3(1)(c)**. Mandatory **quarterly** user disclosures, notifying users every three months of the consequences of violating platform rules, suspension or termination of access, exposure to civil and criminal liability, and mandatory reporting obligations.
2. **Rule 3(1)(ca)**. For platforms **enabling** such content: inform users clearly of the legal risks, and apply the listed enforcement actions on violation, namely immediate removal or disabling, suspension or permanent termination of accounts with evidence preservation, **disclosure of the identity of the violating user to the victim** as per law, and mandatory reporting to authorities.
3. **Rule 3(1)(cb)**. Prompt and appropriate action on becoming aware of unlawful synthetic content, covering the same measures.
4. **Rule 3(3)(a)**. Mandatory **labelling of lawful** synthetic content, with clear and prominent identification plus permanent metadata or technical provenance including **unique identifiers** for traceability.
5. **Rule 3(3)(b)**. Protection of the **integrity of the labelling system**, preventing modification, suppression or removal of labels, metadata, provenance mechanisms and identifiers.
6. **Rule 4(1A)**. For **significant social media intermediaries**: a mandatory **user declaration** of synthetic status **before publication**, technical measures to **verify the accuracy** of that declaration, and clear labelling once declared. **Such content cannot be published without both a declaration and a label.**

5.5 The shortened timelines

Four timelines were cut. **Government or court takedown orders fell from 36 hours to 3 hours. General grievance responses fell from 15 days to 7 days. Grievance responses for sensitive content fell from 72 hours to 36 hours. And sexual or privacy invasive content, covering nudity, sexual acts, exposure of private body parts and morphed images, fell from 24 hours to 2 hours.**

Reporting also indicates that removal directions for victim reported non consensual intimate imagery and child sexual abuse material require an officer of at least **Deputy Inspector General** rank.

5.6 The constitutional problems

Pre publication screening

The scheme requires a **user declaration plus verification before upload**. Indian jurisprudence in *Brij Bhushan v. State of Delhi* and *Romesh Thappar v. State of Madras* opposed **pre censorship** and favoured **post publication accountability**.

The scheme also makes intermediaries the gatekeepers, shifting the decision from courts to private platforms, with the attendant risk of collateral censorship as platforms over censor to avoid liability.

On proportionality it arguably fails the **least restrictive means** limb, because alternatives exist, and the **balancing** stage, because the harm to speech exceeds the benefit. The result is de facto prior restraint plus privatised censorship.

Overbreadth and vagueness

Overbreadth means regulating an excessive amount of speech; **vagueness** means unclear standards leading to arbitrary enforcement. The definition uses "**appears to be real**" and "**likely to be perceived**", which are **subjective**, and the parallel with *Shreya Singhal* is direct, since vague terms produce unconstitutionality. Because enforcement relies on automated tools that classify inconsistently, the outcome is **over removal of lawful content** and a chilling effect.

Privacy and identity disclosure

Privacy under **Article 21** was recognised in *K.S. Puttaswamy*. The **legitimate aim** here is protecting victims of deepfakes, impersonation and non consensual intimate imagery. The key concern is **identity disclosure without judicial oversight**, since Rules 3(1)(ca) and 3(1)(cb) require disclosure of the violating user's identity to the victim, with risks of harassment and retaliation and no procedural safeguards or independent review.

The sharpest available critique draws on Part 2. In **Neetu Singh** disclosure was ordered **by a court and in a sealed cover**, and in **Shaviya Sharma** it was ordered by a court and **restricted to use in legal proceedings**. **So court supervised disclosure is a fundamentally different constitutional proposition from platform administered disclosure to a private victim.**

5.7 Practical limits

Technically, **detection is inherently uncertain**, because deepfakes evolve using adaptive models such as generative adversarial networks, producing an **arms race** in which generation tools adapt as detection improves. False positives flag lawful satire, parody and journalism, while false negatives let harmful content through, and no clear rules govern errors, user notification or appeal. Metadata degrades through compression and editing, so watermarks are unreliable. **There is no reliable universal method to distinguish harmful from legitimate synthetic content.**

Operationally, the **scale** of user generated content is the first problem, and **context sensitive classification** requires intent analysis and the ability to distinguish harm from satire, which automated tools often cannot do. India's multilingual and culturally diverse content creates real risk of misinterpretation by moderators. **A two hour window for sexual or privacy invasive content and a three hour window for government orders effectively forecloses considered assessment**, so platforms adopt risk averse moderation and over remove lawful speech.

5.8 The way forward

Five directions are set out in the class material: **technology driven compliance** through better detection and content authenticity standards; **a growing role for courts** in clarifying the boundary between creative expression and harmful manipulation while protecting satire and parody; **global cooperation**, since synthetic content crosses borders; **public awareness and digital literacy**, because regulation alone cannot tackle misinformation; and a move **towards a comprehensive digital law**, the current amendments being an **interim measure** pending a broader **Digital India Act**.

Part 6 Case List by Topic

Each case appears with its citation and its holding in one line. Cases marked **[verified]** were checked against the reported judgment or an authoritative report while these notes were prepared. Cases marked **[class material]** rest on the course presentations and standard citations, and should be confirmed before being cited with paragraph numbers. Cases marked **[pending]** have no final judgment.

6.1 Foundations, definitions and jurisdiction

1. **Konkan Railway Corporation Ltd. v. Rani Construction (P) Ltd.**, AIR 2002 SC 778. A UNCITRAL Model Law is no guide to interpreting a domestic Act that is not identically drafted. **[class material]**
2. **Diebold Systems Pvt. Ltd. v. Commissioner of Commercial Taxes**, Karnataka High Court, 2005. An ATM is not a computer by itself; it is connected to a computer that does the processing. **[class material]**
3. **Swami Ramdev & Anr. v. Facebook, Inc. & Ors.**, CS (OS) 27/2019; 263 (2019) DLT 689, Delhi High Court, 23 October 2019. Content uploaded from Indian IP addresses must be removed **globally**; content uploaded from abroad must be **geoblocked** from India. **[verified]**
4. **Google Inc. v. Equustek Solutions Inc.** (Equustek I), 2017 SCC 34, Supreme Court of Canada. In personam jurisdiction permits a worldwide injunction where that is necessary for effectiveness. **[class material]**
5. **Google Inc. v. Equustek Solutions Inc.** (Equustek II), N.D. Cal. The Canadian order is unenforceable in the United States because it undermines Section 230 of the Communications Decency Act. **[class material]**
6. **Equustek Solutions Inc. v. Jack** (Equustek III), 2018 BCSC 610. The Canadian order stands regardless of unenforceability abroad. **[class material]**
7. **LICRA and UEJF v. Yahoo! Inc. and Yahoo France**, Tribunal de Grande Instance de Paris, 2000. A national court may order a foreign platform to restrict content within its territory. **[class material]**

6.2 Intermediary liability

1. **Shreya Singhal v. Union of India**, (2015) 5 SCC 1, paragraph 119(c). Section 79(3)(b) and Rule 3(4) read down so that **actual knowledge** means a court order or a government notification. **[verified]**
2. **Sanjay Kumar Kedia v. Narcotics Control Bureau**, Supreme Court, 2007. No immunity where the business is only a facade and camouflage for the offence. **[class material]**
3. **Avnish Bajaj v. State** (Bazee.com), Delhi High Court 2008 and Supreme Court 2012. A director cannot be vicariously liable where the **company was not arraigned**; the governing authority is **Aneeta Hada v. Godfather Travels & Tours (P) Ltd.**, (2012) 5 SCC 661. **[verified]**
4. **Sharat Babu Digumarti v. Government of NCT of Delhi**, (2017) 2 SCC 18, 14 December 2016. The IT Act is a **special law**, so obscenity in electronic form falls under Section 67 and not Section 292 of the Penal Code. **[verified]**
5. **Super Cassettes Industries Ltd. v. MySpace Inc.**, Single Judge 2011, reversed on appeal as **MySpace Inc. v. Super Cassettes Industries Ltd.**, 23 December 2016, paragraph 57. Secondary infringement needs **actual knowledge, not general awareness**; Section 81 does not override safe harbour; the owner must give **URL specific notice**, after which removal follows within 36 hours. **[verified]**
6. **Kent RO Systems Ltd. v. Amit Kotak**, Delhi High Court, 2017. **No duty to screen content in advance**, because that would change an intermediary from a facilitator into an adjudicator. **[class material]**
7. **Christian Louboutin SAS v. Nakul Bajaj & Ors.**, 2018 SCC OnLine Del 12215, 2 November 2018. **Active participation** in the selling process takes a platform outside Section 79. **[verified]**

8. **Amazon Seller Services Pvt Ltd v. Modicare Ltd & Ors.**, Delhi High Court Division Bench, 31 January 2020. The Direct Selling Guidelines 2016 are only **advisory**, and the Court declined to draw a passive against active distinction under Section 79. **[class material]**
9. **X v. Union of India and Ors.**, W.P.(Crl.) 1082/2020, 20 April 2021, paragraph 90. The **nine limb framework**: removal in 24 hours, preservation for 180 days, search engine de indexing, proactive monitoring, and loss of exemption on non compliance. **[class material]**
10. **Neetu Singh & Anr v. Telegram FZ LLC & Ors.**, CS(COMM) 282/2020, 2022. Foreign server location is **no bar** to jurisdiction or disclosure, and privacy is no shield for an infringer. **[class material]**
11. **Flipkart Internet Private Ltd. v. State of NCT of Delhi & Anr.**, 2022/DHC/003072, 17 August 2022. Safe harbour applies **even in criminal prosecution** unless an active role is disclosed. **[class material]**
12. **Shaviya Sharma v. Squint Neon & Ors.**, 2024 SCC OnLine Del 1445, 22 February 2024. Doxing is **not defined** in Indian law, but victims cannot be left remedy less, and relief lies in tort read with **Puttaswamy** and **R. Rajagopal**. **[class material]**
13. **Sanchit Gupta v. Union of India and Anr.**, 2024 SCC OnLine Del 5880, 23 July 2024. A platform performs no public function, so a writ under Article 226 is **not maintainable** against it. **[class material]**
14. **Indiamart Intermesh Ltd v. Puma SE**, 2025:DHC:4819:DB, 2 June 2025. A brand name in a seller drop down is **descriptive use** under Section 30(1) of the Trade Marks Act, and brand owner emails are not actual knowledge. **[class material]**
15. **Google India Pvt Ltd v. Visakha Industries**, Andhra Pradesh High Court 2009 and Supreme Court 2019. Refusal to remove content, where the operator has the power and ability to do so, **may amount to publication** under Section 499. **[class material]**
16. **The Registrar (Judicial), Madurai Bench v. Secretary, Union Ministry of Communications**, Madras High Court, 2018 (Blue Whale). Online services **cannot abdicate their duties under law**. **[class material]**
17. **Sabu Mathew George v. Union of India**, Supreme Court, orders through 2018. Search engines directed to **auto block** prenatal sex determination advertisements and remove notified content within 36 hours. **[class material]**
18. **Kamlesh Vaswani v. Union of India**, Supreme Court, 2013 onwards. 857 websites blocked in August 2015 and all unblocked within days, showing the limits of wholesale blocking. **[class material]**
19. **X Corp v. Union of India** (Sahyog Portal), W.P. No. 7405/2025, Karnataka High Court, 24 September 2025. Section 79(3)(b), Rule 3(1)(d) and the Portal upheld; a **United States company cannot invoke Article 19**. **[verified]**
20. **Telegram FZ LLC & Anr. v. Union of India & Ors.**, W.P.(C) 8259 of 2026, Delhi High Court, 19 June 2026. Section 69A can block an **entire platform**, since "information" is technologically neutral. **[verified]**

6.3 Cyber speech and hate speech

1. **Shreya Singhal v. Union of India**, (2015) 5 SCC 1, 24 March 2015. Section 66A **struck down**; discussion and advocacy are **protected** and only **incitement** may be restricted; Section 69A **upheld**. **[verified]**
2. **Pravasi Bhalai Sangathan v. Union of India**, AIR 2014 SC 1591. The Court refused to frame hate speech guidelines and referred the question to the Law Commission. **[class material]**
3. **Campaign Against Hate Speech v. State of Karnataka**, Karnataka High Court, 2020. A court will not judicially define hate speech in the absence of legislation. **[class material]**
4. **Ashwini Kumar Upadhyay v. Union of India**, 2026 INSC 432, 29 April 2026, paragraph 37. **No legislative vacuum** on hate speech; courts cannot create offences; procedural remedies are adequate; **no continuing mandamus**. **[verified]**

5. **Arnab Ranjan Goswami v. Union of India**, (2020) 14 SCC 12, 19 May 2020, paragraphs 32 and 33. Fourteen FIRs quashed, the **lead FIR retained**, the **CBI transfer refused**; multiple FIRs fail the **least restrictive means** limb. [verified]
6. **Mohammed Zubair v. State of NCT of Delhi**, W.P.(Crl.) No. 279 of 2022, 20 July 2022. Bail in all FIRs, Uttar Pradesh FIRs transferred to Delhi and the SIT disbanded, and **no gag on tweeting**. [class material]
7. **Mohammad Amir Ahmad @ Ali Khan Mahmudabad v. State of Haryana**, W.P.(Crl.) No. 219 of 2025. Interim bail with a **speech restraint**; proceedings **closed on 16 March 2026 because Haryana refused sanction**. [verified]
8. **Wazahat Khan v. Union of India & Ors.**, W.P.(Crl.) No. 247 of 2025. Ad interim protection across States, with oral observations on self regulation and fraternity. [pending]
9. **Imran Pratapgarhi v. State of Gujarat**, 2025 INSC 410, 28 March 2025. FIR over a poem quashed; police must conduct a **preliminary inquiry under Section 173(3) of the Bharatiya Nagarik Suraksha Sanhita** before registering an FIR in speech cases. [verified]

6.4 Fake news and State fact checking

1. **Alak Alok Srivastava v. Union of India**, W.P. No. 468 of 2020, 31 March 2020. Media directed to verify news before dissemination and publish the **official version**; Section 54 of the Disaster Management Act 2005 invoked. [class material]
2. **Kunal Kamra v. Union of India**, 2024:BHC-OS:14371-DB, Bombay High Court, September 2024. Rule 3(1)(b)(v) and the government **Fact Check Unit** held unconstitutional, because **falsity is not an Article 19(2) ground** and the Government cannot be arbiter of truth in its own cause. [verified]

6.5 Obscenity and child protection

1. **Ekta Kapoor v. State of M.P.**, M.Cr.C. No. 28386 of 2020, Madhya Pradesh High Court, 11 November 2020. FIR **not quashed**; Section 67 made out but **Section 67A not made out** for want of a sexually explicit act. [class material]
2. **Apoorva Arora & Anr. v. State (Govt. of NCT of Delhi) & Anr.**, 2024 INSC 223, 19 March 2024, paragraphs 46 and 47. **Vulgarity and profanity are not per se obscenity**; judge the work as a whole; the test is not decency or common usage; a higher threshold applies to **pull media**. [verified]
3. **Allahbadia v. Union of India**, W.P.(Crl.) No. 83 of 2025. Interim protection on four conditions; podcast permitted subject to "decency and morality". [pending]
4. **Just Rights for Children Alliance & Anr. v. S. Harish & Ors.**, 2024 INSC 716, 23 September 2024. **Storage, possession and even viewing** of such material is punishable under Section 15 of POCSO and Section 67B; the term **CSEAM** should replace "child pornography". [verified]

6.6 Authorities cited in support

These are not syllabus cases in themselves, but they are the authorities the syllabus cases rely on. Knowing which supports which proposition makes an answer look properly sourced.

1. **Justice K.S. Puttaswamy (Retd.) v. Union of India**, (2017) 10 SCC 1. Privacy is a fundamental right under Article 21, and any invasion must satisfy legitimate aim, legality, necessity and **proportionality**. Used in **Neetu Singh**, **Shaviya Sharma**, the CERT Directions critique and Part 5.
2. **R. Rajagopal v. State of T.N.**, (1994) 6 SCC 632. Privacy in tort. Used in **Shaviya Sharma**.
3. **Aneeta Hada v. Godfather Travels & Tours (P) Ltd.**, (2012) 5 SCC 661. The company must be arraigned before those in charge can be prosecuted. The basis of the **Avnish Bajaj** outcome.
4. **T.T. Antony v. State of Kerala**, (2001) 6 SCC 181. Only the earliest information satisfies Section 154, so there can be no second FIR on the same occurrence. Applied in **Arnab Goswami**.
5. **Subramanian Swamy v. Union of India**, (2016) 7 SCC 221. Criminal defamation requires a complaint by the aggrieved person, so no FIR lies. Applied in **Arnab Goswami**.

6. **Arnesh Kumar v. State of Bihar**, (2014) 8 SCC 273. The existence of the power of arrest must be distinguished from its exercise. Applied in **Mohammed Zubair**.
7. **Lalita Kumari v. Government of Uttar Pradesh**, (2014) 2 SCC 1. Registration of an FIR is mandatory and the police have no discretion. Applied in **Ashwini Kumar Upadhyay**.
8. **Vishaka v. State of Rajasthan**, (1997) 6 SCC 241. Judicial guidelines are permissible only where there is a genuine legislative vacuum. Distinguished in **Ashwini Kumar Upadhyay**.
9. **Anuradha Bhasin v. Union of India**, (2020) 3 SCC 637. Internet speech falls within Article 19(1)(a) and restrictions must satisfy proportionality. Applied in **Telegram** and cited in **Kunal Kamra**.
10. **Kaushal Kishor v. State of Uttar Pradesh**, (2023). Restrictions must be justifiable under a law competent under Article 19(2). Relied on in **Kunal Kamra**.
11. **Brij Bhushan v. State of Delhi**, AIR 1950 SC 129, and **Romesh Thappar v. State of Madras**, AIR 1950 SC 124. Indian constitutional law is set against **pre censorship**. Used against the pre publication verification scheme in Part 5.
12. **Aveek Sarkar v. State of West Bengal**, (2014) 4 SCC 257; **Samaresh Bose v. Amal Mitra**, (1985) 4 SCC 289; **Bobby Art International v. Om Pal Singh Hoon**, (1996) 4 SCC 1. The obscenity tests relied on in **Apoorva Arora**.
13. **Director General of Doordarshan v. Anand Patwardhan**. A film must be judged from an average, healthy, common sense point of view. Relied on in **Ekta Kapoor**. The report is commonly given as (2006) 8 SCC 433 while the class material gives (1996) 8 SCC 433, so verify before citing the report.
14. **Cubby Inc. v. CompuServe Inc.**, 1991, and **Stratton Oakmont Inc. v. Prodigy Services Co.**, 1995. The distributor and publisher characterisations whose combined effect punished platforms for moderating, prompting Section 230.
15. **Eva Glawischnig-Piesczek v. Facebook Ireland Limited**, Case C-18/18, Court of Justice of the European Union, 3 October 2019. A host provider may be ordered to remove identical and equivalent content, including worldwide. Relied on in **Swami Ramdev**.
16. **Shabana v. Government of NCT of Delhi**, Delhi High Court, 28 October 2024. Emphasised coordination between platforms and law enforcement, which led to the Sahyog Portal.

Part 7 Examination Notes

7.1 How the paper is set

The teacher said the questions will be **problem based** rather than theoretical, that you must **apply** what was discussed using the case laws, and that general or vague answers will not earn marks. You must state **which legal provision, which legal issue, and how you support it with a case law.**

Use the same four steps every time.

1. **Name the facts that matter.** In one or two lines, pick out only the facts that decide the case: who did what, on whose computer, and whether there was permission.
2. **Name the exact provision.** Not "the IT Act". Say Section 79(3)(b), Section 2(1)(w) or Rule 3(1)(d).
3. **State the legal issue as a question.** For example, is the platform an intermediary within Section 2(1)(w), or an active seller?
4. **Apply a case and conclude.** Give the case name, its one line rule, apply it to your facts, and state your conclusion. If the law is unsettled, say so and give both sides.

A model four sentence answer: "The relevant provision is Section 79(3)(b). The issue is whether the platform had actual knowledge. In *Shreya Singhal* the Supreme Court read down Section 79(3)(b) to mean knowledge from a court order or a government notification. Since the platform received only a private email from the brand owner, it did not have actual knowledge and retains the protection of Section 79(1)."

7.2 Three provisions that no longer apply

1. **Section 66A was struck down in 2015 and can never be applied.** If a question involves offensive online messages, say so expressly and then look elsewhere.
2. **Section 43A** was repealed by the Digital Personal Data Protection Act 2023.
3. **There is no Section 66G in the IT Act.** A provision on online harassment bearing that number was proposed in a Private Member's Bill in 2023 and is not law, although some circulating study material presents it as though it were.

7.3 Unsettled points worth flagging

Saying that a point is unsettled, and then giving both sides, earns more than pretending it is settled.

1. **Active against passive intermediaries.** *Christian Louboutin* denies safe harbour for active participation, while *Amazon v. Modicare* declined to draw that distinction under Section 79. *Indiamart* (2025) is the most recent Division Bench view.
2. **Proactive screening.** *Kent RO* says there is no duty to screen in advance, while *Sabu Mathew George* required auto blocking and private expert committees deciding legality.
3. **Judicial guidelines on speech.** *Ashwini Kumar Upadhyay* (April 2026) holds that the Court cannot legislate on hate speech, while in *Wazahat Khan* (2025) another Bench was actively contemplating guidelines on citizens' speech.
4. **Section 69A against Section 79(3)(b).** If Section 79(3)(b) works as a parallel takedown route without the safeguards Section 69A carries, those safeguards can be bypassed. *X Corp* upheld the route, and an appeal has been filed.

7.4 Four details to confirm with your teacher

These notes flag uncertainty rather than filling gaps. Four items could not be confirmed.

1. The tie breaking opinion in *Kunal Kamra* is dated 26 September 2024 in the class material, while reliable reporting gives **20 September 2024**. Write "September 2024" if unsure.

2. The active participation test in ***Christian Louboutin*** is cited at paragraph 78 in the class material, while verified reporting places the factor list at paragraph 56 and the aiding or abetting test at paragraph 63. State the test without a paragraph number.
3. The figures reported in ***Telegram***, that 900 of 1,300 flagged URLs were removed and 150 million users affected, appear only in secondary commentary and are not corroborated by the judgment.
4. The standard in the National Cyber Security Policy discussion appears in the slides as ISO/IEC 2001, whereas the information security management system standard is **ISO/IEC 27001**.